

**¶ The Art
or crafte of
Rheto=
ryke.**

22
22
1.5 3 2

**¶ The Art
or crafte of
Rheto-
ryke.**

1. 5. 3. 2.

The Project Gutenberg eBook of The Art or Crafte of Rhetoryke

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Art or Crafte of Rhetoryke

Author: Leonard Cox

Contributor: Philipp Melanchthon

Release date: May 26, 2008 [eBook #25612]

Language: English

Other information and formats: www.gutenberg.org/ebooks/25612

Credits: Produced by Greg Lindahl, Linda Cantoni, and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by the Bibliothèque nationale de France (BnF/Gallica) at <http://gallica.bnf.fr>)

***** START OF THE PROJECT GUTENBERG EBOOK THE ART OR
CRAFTE OF RHETORYKE *****

Transcriber's Notes

About this book. *The Art or crafte of Rhetoryke*, by Leonard Cox (or Cockes) was originally published c. 1530; the second edition was published in 1532. It is considered the first book on rhetoric written in the English language.

Typography. This e-book was transcribed from the 1532 edition. The original line and paragraph breaks, hyphenation, spelling, capitalization, and punctuation, including the use of a spaced forward slash (/) for the comma, the use of u for v and vice versa, and the use of i for j, have been preserved. All apparent printer errors have also been preserved, and are hyperlinked to a [list](#) at the end of this document.

The following alterations have been made:

1. Long-s (ſ) has been regularized as s.
2. The paragraph symbol, resembling a C in the original, is rendered as ¶.
3. Missing hyphens have been added in brackets, e.g. [-].
4. Abbreviations and contractions represented as special characters in the original have been expanded as noted in the table below. A macron means a horizontal line over a letter. A cursive semicolon is an old-style semicolon somewhat resembling a handwritten z. Supralinear means directly over a letter. Superscript means raised and next to a letter. The y referred to below is an Early Modern English form of the Anglo-Saxon thorn character, representing th, but identical in appearance to the letter y.

Original	Expansion
&c with macron	&c[etera]
q with cursive semicolon	q[ue]
superscript closed curve	[us]
long final s	[e]s
crossed p	p[er] or p[ar]
p with looped downstroke	p[ro]
p with macron	p[re]
consonant with supralinear upward curve	consonant[er]
w with supralinear t	w[i]t[h]
y with macron	y[at] (i.e., that)
y with supralinear u	y[o]u (i.e., thou)

Superscript letters are rendered as they appear in the original, e.g., ye = the; yt = that.

A macron over a vowel represents m or n, and is rendered as it appears in the original, e.g., cōprehēded = comprehended.

Greek. This text contains some phrases in ancient Greek. Hover the mouse over the Greek to see a pop-up transliteration, like this: βιβλος.

Pagination. This book was printed as an octavo volume, and was paginated using a recto-verso scheme. In octavo printing, the printer uses large sheets of paper folded and cut into eight leaves each, creating 16 pages. The front of each leaf is the recto page (the right-hand page in a book);

the back of each leaf is the verso page (the left-hand page in a book). For this book, the printer apparently used six sheets, lettered A through F, and each leaf is numbered with a lower-case Roman numeral, i through viii. Thus, for example, the first leaf (i) from the second sheet (B) is numbered B.i.

In the original, page numbers are printed only on the recto side of each leaf, and are not printed at all after the fourth or fifth recto page of each sheet, until the first leaf of the next sheet. For the reader's convenience, all pages in this e-book, even those without a printed number in the original, have been numbered according to the original format, with the addition of "r" for recto and "v" for verso. Pages A.i.v and F.viii.r are blank and are not numbered in this e-book.

Sources consulted. This e-book was prepared from microfiche scans of the 1532 edition, which can be viewed at the Bibliothèque nationale de France (BnF/Gallica) website at <http://gallica.bnf.fr>. The uneven quality of the scans, and the blackletter font in the original, made the scans difficult to read in some places. To ensure accuracy, the transcriber has consulted the following sources:

1. The 2004 electronic transcription by Robert N. Gaines, available in SGML format from the Arts and Humanities Data Service, <http://ahds.ac.uk>. The typography notes above are based in part on the notes to that transcription.
2. The 1899 reprint edited and annotated by Frederick Ives Carpenter (University of Chicago Press; facsimile reprint by AMS Press, 1973).

¶ The Art or crafte of Rhetor- yke.

¶ To the reuerende father in god
 & his singuler good lorde / the lorde Hugh
 Faryngton Abbot of Redynge / his pore
 client and perpetuall seruaunt Leonarde
 Cockes desyreth longe & prosperouse lyfe
 with encrease of honour.



Onsiderynge my
 spe[-]

ciall good lorde how great[-]
 ly and how many ways I
 am bounden to your lord-
 shyp / and among all other

that in so great a nombre
 of counynge men whiche are now within
 this region it hath pleased your goodnes
 to accepte me as worthy for to haue the
 charge of the instruction & bryngynge vp
 of suche youth as resorteth to your gra-
 mer schole / fouēded by your antecessours in
 this your towne of Redynge / I studied a
 longe space what thyng I myght do next
 the busy & diligent occupienge of my selfe
 in your sayd seruyce / to the whiche bothe
 conscience and your stipende doth straytly

bynde me / that myght be a significacion
of my faithfull and seruysable hart which
I owe to your lordeshyp / & agayne a long
memory bothe of your singuler and bene-
ficiall fauour towarde me: and of myn in-
dustry and diligence employed in your ser-
uyce to some profite: or at the leest way to
some delectacion of the inhabitauntes of
this noble realme now flouryshynge vn-
der the most excellent & victorious prynce
our souerain Lorde kyng Henry the .viii.

¶ And whan I had thus long prepensed
in my mynde what thyng I myght best
chose out: non offred it selfe more conue-
nyent to the profyte of yonge studentes
(which your good lordshyp hath alwayes
tenderly fauoured) and also meter to my
p[ro]fession: than to make som proper werke
of the right pleasaunt and persuadible art
of Rhetorique / whiche as it is very neces-
sary to all suche as wyll either be Aduoca[-]
tes and Proctours in the law: or els apte
to be sent in theyr Prynces Ambassades /
or to be techers of goddes worde in suche
maner as may be moost sensible & accepte
to theyr audience / and finally to all them
hauynge any thyng to purpose or to speke
afore any companye (what someuer they
be) So contraryly I se no science that is
lesse taught & declared to Scolers / which
ought chiefly after the knowlege of Gra-
mer ones had to be instructe in this facul[-]
tie / without the whiche oftentymes the
rude vtteraunce of the Aduocate greatly
hindereth and apeyreth his cliētes cause.

Likewise the vnapt disposicion of the preacher (in orderynge his mater) confoundeth the memory of his herers / and briefly in declarynge of maters: for lacke of inuencion and order with due elocucion: great tediousnes is engendred to the multitude beyng present / by occasion wherof the speaker is many tymes ere he haue ended his tale: either left almost aloon to his no litle confusiō: or els (which is a lyke rebuke to hym) the audience falleth for werynes of his ineloquent language fast on slepe.

¶ Wyllynge therfore for my parte to help suche as are desirouse of this Arte (as all surely ought to be which entende to be regarded in any comynaltie) I haue partly translated out a werke of Rhetorique wryten in the Latin tongue: and partely compyled of myn owne: and so made a lytle treatyse in maner of an Introductyon into this aforesayd Science: and that in our Englysshe tongue. Remembrynge that euery good thyng (after the sayeng[e]s of the Philosopher) the more comon it is: the more better it is. And furthermore trustynge therby to do som pleasure and ease to suche as haue by negligence or els fals persuacions be put to the lernyng of other sciences or euer they haue attayned any meane knowlege of the Latin tongue.

¶ whiche my sayd labour I humbly offre to your good Lordeshyp / as to the chyefe maintener & nouryssher of my study / besechynge you / thoughe it be ferre within

your merites done to me / to accepte it as
the fyrst assay of my pore and simple wyt /
which yf it may fyrst please your Lord-
shyp / and nexte the reders / I trust by
the ayde of almyghty god to endyte
other werkes bothe in this facul-
ty and other to the laude of the
hygh godhed / of whome all
goodnes doth procede / and
to your Lordshyps plea-
sure / and to profyte
and delectacion of
the Reder. 



Ho someuer desyreth to be
a good Oratour or to dys-
pute and commune of any
maner thyng / hym beho-
ueth to haue foure thinges.

¶ The fyrst is called In-
uencion / for he must fyrst

of all imagin or
Inuent in his mynde what he shall say.

¶ The seconde is named Iugement. For
he must haue wyt to deserue & iuge whe-
ther tho thynges that he hath founde in
his mynde be conuenient to the purpose
or nat. For oftētymes yf a man lacke this
property / he may aswell tell that that is
against hym as with hym / as experience
doth dayly shew. ¶ The thyrde is Dispo-
sicion / wherby he may know how to order

and set euery thyng in his due place / leest
thoughe his inuencion and iugement be
neuer so good / he may happen to be coun-
ted (as the comon prouerbe sayth) to put
the carte afore the horse. ¶ The fourth
& last is suche thynges as he hath inuen-
ted: and by Iugement knowen apte to his
purpose whan they are set in theyr order
so to speke them that it may be pleasaunt
and delectable to the audience / so that it
may be sayd of hym that hystories make
mention that an olde woman sayd ones
by Demosthenes / & syns hath ben a comō
prouerbe amonge the Grekes [οὗτος](#) ἐστὶ
which is as moche to say as (This is he)
And this last p[ro]perty is called among ler-
ned men ([Eloquence](#)). ¶ Of these foure the
moost difficile or harde is to inuent what
thou must say / wherfore of this parte the
Rethoriciens whiche be maisters of this
Arte: haue writen very moche & diligētly.

¶ Inuencion is comprehended in certayn
places / as the Rhetoriciens call them / out
of whom he that knoweth y^e faculty may
fetche easely suche thynges as be mete for
the mater that he shall speke of / which ma[-]
ter the Oratours calleth the Theme / and
in our vulgare tongue it is called impro-
perly the Anthethem. ¶ The theme pur-
posed: we must after the rules of Rheto-
rique go to our places that shall anō shew
vnto vs what shall be to our purpose.

¶ Example.

IN olde tyme there was greate enuy
betwene two noble men of Rome / of
whō the one was called Milo / & the other
Clodius / which malice grew so ferre that
Clodius layd wayte for Milo on a season
whan he sholde ryde out of the Citie / and
in his iourney set vpon hym / and there as
it chaunced: Clodius was slayne / where
vpon this Clodius frendes accused Milo
to the Cenate of murder. Tully whiche in
tho days was a great Aduocate in Rome
sholde plede Miloes cause. Now it was
open that Milo had slayne Clodius / but
whether he had slayn hym lafully or nat
was the doubte. So than the Theme of
Tullies oraciō or plee for Milo was this /
that he had slayne Clodius lafully / and
therfore he ought nat to be punisshed / for
the confirmacion wherof (as dothe appere
in Tullies oracion) he dyd brynge out of
places of Rhetoryque argumentes to p[ro]ue
his sayd Theme or purpose. And likewyse
must we do whan we haue any mater to
speke or comun of. As if I sholde make an
oracion to the laude & prayse of the Kyn-
ges highnes: I must for the Inuencyon
of suche thynges as be for my purpose go
to places of Rhetorique / where I shall
easily finde (after I know the rules) that
that I desyre. ¶ Here is to be noted that
there is no Theme but it is conteyned vn[-]
der one of the foure causes / or for the more
playnnes foure kyndes of Oracions.

¶ The fyrste is called Logycall / whyche
kinde we call properly disputaciō. ¶ The

seconde is called Demonstratiue. ¶ The
 thyrd Deliberatiue. ¶ The fourth Iudi-
 ciall / and these thre last be properly called
 spices or kyndes of oracions / whose natu-
 res shall be declared seperately hereafter
 with the crafte that is required in euery of
 them. All themes that pertain to Logike
 either they be simple or compounde. As yf
 a man desyre to know of me what Iustice
 is. This onely thīg Iustice is my theme.
 Or if disputation be had in company vpon
 religion / and I wolde declare the very na-
 ture of religion / my theme shulde be this
 simple or one thyng religion. But yf it be
 doubted whether Iustyce be a vertue or
 nat / and I wolde proue the parte affyrma[-]
 tyue / my theme were now compoūde / that
 is to say / Iustice is a vertue / for it is made
 of two thynges knyght and vnied together /
 Iustice and vertue. ¶ Here must be noted
 that Logike is a playn & a sure way to in-
 struct a mā of the trouth of euery thyng /
 & that in it the natures / causes / partes / &
 effectes of thynges are by certayne rules
 discussed & serched out / so that nothing can
 be p[er]fectly & p[ro]perly knowē but by rules
 of
 Logike / which is nothing but an obserua[-]
 cyon / or a dylygent markynge of nature.
 whereby in euery thyng mannes reason
 dothe consyder what is fyrste / what last /
 what proper / what improper.

¶ The places or instrumentes of a simple
 theme are.

The diffinicion of the thyng.

The causes.

The partes.

The effectes.

¶ Exāple. If thou inquire what thīg Iu[-]
stice is / whereof it cometh / what partes it
hath / & what is the office or effect of euery
parte / than hast thou diligētly serched out
the hole nature of Iustice / & handeled thy
simple theme accordyng to the precept[e]s of
Logicians / to whom our auctour leueth
suche mat[er]s to be discussed of thē / howbeit
somwhat y^e Rhetoriciās haue to do with
y^e simple theme / & asmoche as shall be for
theyr entent he wyll shew hereafter. For
many tymes the oratour must vse bothe
diffinicions & diuisions. But as they be in
Logike playne and compendious / so are
they in Rhetorike extēded & paynted with
many figures & ornament[e]s belongyng to
the science. Neuertheles to satisfie the re-
ders mynde / & to alleuiate the tediousnes
of serchyng these places / I wyll open the
maner and facion of the handelyng of the
theme aforsayd as playnly as I can / after
the preceptes of Logike.

¶ First to serche out the perfite knowlege
of Iustice: I go to my fyrst place diffinici[-]
on / & fetch from Aristotle in his Ethik[e]s
the Diffinicion of Iustice / which is this.

¶ Iustice is a morall vertue / wherby men
be the werkers of rightfull thynges (that
is to saye) whereby they bothe loue & also
do suche thynges as be iust. This done: I

serche the causes of Iustice (that is to say)
from whens it toke the fyrst begynnyng /
and by cause that it is a morall vertue: and
Plato in the ende of his Dialogue Menō
concludeth that all vertue cometh of god:
I am assured that god is the chief cause of
Iustice: declaryng it to the worlde by his
Instrument mānes wyt / whiche the same
Plato affyrmeth in the begynnyng of his
lawes. The Diffinicion and cause had: I
come to the thyrde place called partes to
knowe whether there be but one kynde of
Iustice or els many. And for this purpose
I fynde that Arystotle in the fyfte of his
Ethikes deuideth Iustice in two speces or
kyndes. One yt he calleth Iustice legiti-
me or legal / an other that he called Equi-
te. ¶ Iustice legall is that that consysteth
in the superiours whiche haue power for
to make or statute lawes to the īferiours.
And the office or ende of this Iustice is to
make suche lawes as be bothe good and
accordynge to right and conscience / & thā
to declare them / & whan they are made &
publisshed as they ought to be / to se that
they be put in vre / for what auaieth it to
make neuer so good lawes: yf they be nat
obserued and kept. ¶ And finally that the
maker of the lawe applye his hole studie &
mynde to the welthe of his subiectes and
to the comon profyte of them. The other
kynde of Iustice whiche men call Equitie
is whereby a man neyther taketh nor gy-
ueth lesse nor more than he ought / but in
gyuynge taketh good hede that euery mā
haue accordynge as he deserueth. This

Equitie is agayne deuýded into Equitie distributyue of comon thynges & Equitie Commutatiue. By Equitie distributyue is distributyd and giuen of comon goodes to euery mā accordyng to his deseruyng[e]s and as he is worthy to haue. As to deuide amonge suche as longe to the Chyrche of the Chyrche goodes after the qualitie of theyr merytes: and to them beyng Ciuil persones of the comon treasour of the Cítie accordyng as they are worthy.

¶ In this parte is comprehended the punyshment of mysdoers and trangressours of the lawe / to whome correccion must be distributed for the comon welth according to theyr demerites / after the prescripcions of the lawes of the contrey / made & determined for the punisshment of any maner of transgressour. ¶ Equity cōmutatiue is a iust maner in the chaungynge of thyng[e]s from one to another / whose offyce or effect is to kepe iust dealyng in equitye / as byenge / sellyng / & all other bargaynes lawfull. And so are herewith the spices of Iustice declared theyr offices / which was the fourth & last place.

¶ Our auctour also in a great worke that he hath made vpon Rhetorike / declareth the handelyng of a theme symple by the same example of Iustice / addyng two pla[-]ces mo / whiche are called affines and contraries on this maner.

¶ What is Iustice? A vertue whereby to euery thyng is gyuen that that to it be-

longeth.

¶ What is the cause thereof? Mannes
wyll consentynge with lawes & maners.

¶ How many kyndes? Two.

¶ Whiche? Commutative & Distributive /
for in two maners is our medlynge with
other men / eyther in thynges of our sub-
staunce & wares / or in gentyll and cyuyle
conuersacion.

¶ what thyng is Iustice commutative?
Right and equitie in all contractes.

¶ what is Iustice distributive? Iustice of
ciuile lyuynge.

¶ How manyfolde is Iustyce dystribu-
tyue? Either it is comon or priuate. The
comon is called in latin Pietas / but in en-
glysshe it may be moost properly named
good order / which is the crowne of all ver[-]
tues [conceruynge](#) honest and ciuile con-
uersacyon of men together / as the hedes
with the meane comonalty in good vnity
and concorde. ¶ Pryuate or seuerall Iu-
stice dystributyue is honest and amyable
frendeshyp & conuersacion of neighbours.

¶ What are the offyces? To do for euery
man / ryche or pore / of what estate so euer
he be / and for our contrey / for our wyues /
chyl dren / and frendes / that that ought to
be done for euery of them.

¶ Affynes or vertues nigh to Iustice are
constancy / lyberalytie / temperaunce.

Thynges contrary are fere / couetyse / prodigalitye.

¶ And this is the maner of handelynge of a symple Theme dialectycall. But yet let nat the reder deceyue hym selfe / and thynke that the very perfyte knowlege is shewyd hym all here. And that whiche hath bē shewed now: is somewhat general and brieft. ¶ More sure and exact knowlege is contained in Logike / to whome I wyll aduise thē that be studiouse to resorte & to fetch euey thyng in his owne proper facultie.

¶ Of a Theme compoude.



Uery Theme compoude: eyther it is proued trewe or fals. Now whether thou wylt p[ro]ue or improue any thyng: it must be done by argument. And yf any Theme compoude: be it

Logicall or Rhetorycall / it must be referred to the rules of Logike by thē to be proued trewe or fals. For this is the dyfference that is betwene these two sciences / that the Logician in dysputyng obserueth certayne rules for the settinge of his wordes being solicitous that there be spokē no more nor no lesse than the thyng requyreth / & that it be euin as plaīly spokē as it is thought. But the Rhethorician seketh about & borroweth where he can asmoche as he may for to make the symple and playne Logi-

call argumentes gaye & delectable to the eare. So than the sure iugement of argumentes or reasons must be lerned of the logician / but the crafte to set thē out with pleasaunt figures and to delate the mater belongeth to the Rhetorician. As in Miloes cause / of whome was made mencion afore. ¶ A logician wolde briefly argue / who so euer violently wyll slee an other / may lawfully of the other be slayne in his defence. Clodius wolde vyolently haue slain Milo / wherfore Clodius might lawfully be slayne of Milo in Miloes owne defence. And this argument the logicians call a Sillogisme in Darii / whiche Tully in his oracion extendeth that in foure or fyue leues it is scant made an ende of / nor no man can haue knowlege whether Tullies argument that he maketh in his oracyon for Milo / be a good argumente or nat / and howe it holdeth / excepte he can by Logyke reduce it to the perfecte and briefe forme of a Sillogisme / takynge in the meane season of the Rhetorycyans what ornamentes haue ben cast to for to lyght and augment the oracyon / and to gyue it a maiestie.

¶ The places out of whome are founde argumentes for the prouynge or impro-
uynge of compounde Themes / are these
folowyng.

Diffinicion lyke
Cause contrary
Partes



F the places of argumen-
tes shall be spoken hereaf-
ter. For as touchynge thē
in all thynges the Rheto-
rician & Logician do agre.
But as concernynge the
crafte to fourme argumentes whan thou
hast fōude them in theyr places / that must
be lerned of the Logician / where he trea-
teth of the fourme of sillogismes / enthime[-]
mes and inductions.

¶ Of an oracion demonstratiue.

T He vse of an oracion demon-
stratiue is ī praise or dispraise /
whiche kynde or maner of ora-
cion was greatly vsed somtyme in comon
accions / as dothe declare the oracions of
Demosthenes / and also many of Thucidi-
des oracions. And there ben thre maners
of oracions demonstratiue.

¶ The fyrst conteyneth the prayse or dys-
prayse of persones. As yf a man wolde
prayse the kynges hyghnes / or dysprayse
some yll persone / it must be done by an ora[-]
cion demonstratiue. The seconde kynde of
an oracion demonstratiue is: where in is
prayed or dysprayed / nat the persone but
the dede. As if a thefe put hym selfe in ieo-

p[ar]dy for the safegarde of a true mā / against
other theues and murderers / the p[er]son can
nat be prayed for his vicious lyuyng / but
yet the dede is worthy to be commended.
Or if one shulde speake of Peters denyeng
of Christ / he hath nothyng to dispraise ye
person saue onely for this dede. The thyrd
kynde is: wherein is lauded or blamed no-
ther person nor dede / but some other thing
as vertue / vice / iustice / iniurie / charite / en-
uie / pacience / wrathe / and suche lyke.

¶ Partes of an Oracion.

¶ The partes of an oracion prescribed of
Rhetoriciens are these.

¶ The Preamble or exorden.

¶ The tale or narracion.

¶ The prouynge of the matter or conten-
cion.

¶ The conclusion.

¶ Of the whiche partes mencyon shall be
made hereafter in euery kynde of oracions /
for they are nat founde generally in euery
oracion / but some haue moo partes / and
some lesse.

¶ Of the Preamble.

Generally the Preamble nat alonly
in an oracion demonstratiue / but al-
so in the other two is conteyned and
must be fetched out of thre places / that is
to say of beneuolence / attencion / & to make

the mater easy to be knowen / whiche the Rhetoricians call Docilite.

¶ Beneuolence is the place whereby the herer is made willyng to here vs / and it is conteyned in the thyng that we speke of / in them whom we speke to / & in our owne persone. The easyest and moost vsed place of beneuolence consysteth in the offyce or duety of the person / whan we shew that it is our duety to do that we be about.

¶ Out of this place is fet y^e p[re]āble of saīt Gregory Nazazene / made to the praise of saynt Basyll / where he saith that it is his [his](#) duety to prayse saynt Basyll for thre causes. For the great loue and frendeshyp that hath ben always betwene them / and agayne for the remembraūce of the moost fayre and excellent vertues that were in hym / and thyrde that the chyrch myght haue an example of a good and holy Bysshop. ¶ Trewly by our authours lycence me thynketh that in the preamble Nazazen doth nat only take beneuolence out of the place of his owne persone / but also out of the other two / whā he sheweth the cause of his duetye / for in praysynge his frende he dyd but his duetye. In praysynge his vertues / he cam to the place of beneuolēce of hym that he spake of / as touchyng the example that the chyrche shulde haue / it was for theyr profite / and concernyng the place of beneuolence / taken of them that he spake to. But our authour regarded chiefly the principall proposicion / whiche

was that saynt Gregory Nazazene was
bounde to praise saint Basyll.

¶ A lyke example of beneuolence taken
out of the place of office or dutie / is in the
oracyon that Tully made for the Poete
Archias / whiche begynneth thus.

MY lordes that be here iuges / yf there
be in me any wyt / whiche I knowe
is but small / or yf I haue any crafty vse of
makyng an oracion / wherein I denie nat
but yt I haue metely excercysed my selfe /
or yf any helpe to that science cometh out
of other lyberall artes / in whome I haue
occupied al my lyfe / surely I am boūde to
no man more for them than to Archias /
whiche may lawfully if I may do any mā
any profite by them / challenge a chiefe por[-]
cion for hym therin.

¶ Out of this place dyd this same Tully
fetche the begynnyng of his fyrste epistle /
in whome he wrytethe to one Lentule on
this maner: I do so my deutie in al poyntes
toward you / and so great is the loue
and reuerence that I bere vnto you that
all other men say that I can do no more /
and yet me semeth that I haue neuer don
that that I am bounde to do / eyther to
you or in your cause.

¶ We may also get beneuolence by reason
of them / whome we make our oracion of:
As yf we saye that we can neuer prayse
hym to hyghly / but yt he is worthy moch
more laude and prayse. And so taketh saīt

Nazianzene beneuolence in his sayd oracion for saint Basile.

¶ Also of them afore whome we speke / as if we say / it is for theyr profyte to laude or prayse the p[er]son. And that we knowe very wel howe moche they haue alwayes loued hym / and that he ought therefore to be prai[-]sed the more for theyr sakes. The maner is also to get vs beneuolence in the preface of our oracion / by pynchyng and blamyng of our aduersarie. As doth Tullie in the oracion that he made for one Aulus Cecinna / wherin he begynneth his proeme thus If temerite and lake of shame coulde as moche preuayle in plees afore the iustices / as doth audacite and temerarious boldnesse in the felde and deserte places / there were no remedie but euen so muste Aulus Cecinna be ouercome in this matter by Sextus Ebucius impudence / as he was in the felde ouercome by his insidious audacite. And these be the cōmune formes of beneuolence.

¶ A man may also fetch his proeme out of the nature of the place wher he speketh / as Tullie dothe in the oracion made for Pompeius for the sendynge of hym into Asie agaynst kynge Mithridates of Pontus / and kynge [Tigraues](#) of Armenie on this maner: howe be it my lordes and mai[-]sters of this noble citie of Rome / I haue al tymes thought it a synguler reioyse to me if I myght ones se you gadred to gyther in a cōpany / to here some publique oracion

of myne / and agayne I iuged no place to
be so ample and so honourable to speke in
as this is. &c[etera].

¶ Or he may begyn at the nature of the
tyme that is than / or at som other cyrcum[-]
staunce of his mater / as Tully taketh the
begynnyng of his oracion for Celius at
the tyme / this wise.

¶ If so be it my lordes iuges any mā be
now present here that is ignorāt of your
lawes / of your processe in iugement[e]s / and
of your customes / surely he may well mar[-]
uell what so heynous a mater this shulde
be / that it onely shulde be syt vppon in an
hygh feest daye / whan all the comonaltye
after theyr olde custome are gyuen to the
sight of playes / ordeined after a perpetual
vsage for the nones for them / all maters
of the law laid for the tyme vtterly a part.

¶ He began also an other oracion for one
Sext[us] Roscius / out of the daunger of the
season that he spake in.

¶ One may besyde these vse other maner
of prohemes / whiche by cause they are nat
set out of the very mater it selfe / or els the
circumstaunces / as in these aforsayd they
are called peregrine or straūge prohemes.
And they be taken out of sētences / solēpne
peticions / maners or customes / lawes / sta[-]
tutes of nacyons & contreys. And on this
maner dothe Aristides begyn his oracion
made to the praise of Rome.

¶ Demosthenes in his oracyon made against Eschines / toke his preface out of a solempne petition / besechyng the goddes that he might haue as good fauour in y^t cause / as he had foude in all other maters y^t he had done afore for the comon welth.

¶ In like maner beginneth Tully the oracion that he made for one Murena / & also the oracyon that he made vnto the Romanes after his retourne from exyle.

¶ He begynneth also an other oracyon / whiche he made as touchyng a lawe decreed for the diuision of feldes amonge the comunes out of a custome amonge them / on this wyse.

¶ The maner and custome of our olde fathers of Rome hath ben. &c. And this is the maner of prefaces in any oracion / whiche is also obserued in the making of epistles / how beit there is farre lesse crafte in them than is in an oracyon.

¶ There is yet an other fourme & maner to begyn by insinuacion / wherfore it beho^ueth to know that insinuacion is / whā in the begynnyng / yf the mater seme nat lau^dable or honest / we find an excuse therfore.

¶ Example / Homere in his Iliade describeth one Thersites / that he was moost foule and euyll fauored of all the Grekes that came to the batayle of Troye / for he was both gogle eyed / and lame on the one legge / with croked and pynched shulders /

and a longe pyked hede / balde in very many places. And besyde these fautes he was a great folysshe babler / and ryght foule mouthed / and ful of debate and stryfe / carrynge alwayes agaynste the heddes and wyse men of the armye.

¶ Nowe if one wolde take vpon hym to make an oraciō to the prayse of this losel / whiche mater is of litle honesty in it selfe / he must vse in stede of a preface an insinuation. That what thyng poetes or comune fame doth eyther prayse or dispraise ought nat to be gyuen credence to / but rather to be suspecte. For ones it is the nature of poetes to fayne and lye / as bothe Homere and Virgile / which are the princes and heddes of al poetes to witnesse the selfe. Of whome Homere sayth / that poetes make many lies / and Virgile he saith: The moost part of the sene is but deceyte. Poetes haue sene blake soules vnder the erthe / poetes haue fayned and made many lyes of the pale kyngdome of [Plato](#) / and of the water of Stigie / and of dogges in hell. And agayne cōmune rumours howe often they ben vayne / it is so open that it nede nat to be declared. Wherefore his trust is that the hearers wyll more regarde his saynge than fayned fables of poetes / and fleyng tales of lyght folkes / whiche ar for the more parte the grounders of fame & rumours.

¶ An example may be fet out of the declamation that Erasmus made to the prayse

of folysshenes.

¶ An other example hath the same Erasmus in his second booke of Copia / which is this: Plato in the fyfte dialogue of his communaltie wyllethe that no man shall haue no wyfe of his owne / but that euery woman shalbe commune to euery man. If any man than wolde eyther prayse or defende this mynde of Plato / which is both contrarie to Christes religion and to the commune lyuyng of mē / he myght as Erasmus teacheth / begynne thus.

¶ I knowe very well that this mater whiche I haue determyned to speke of / wyll seme vnto you at the fyrste herynge / nat onely very straunge / but also right abhominable. But that nat withstandyng / yf it wyll please you a litle while to deferre you iugement tyll ye haue herde the sūme of suche reasons as I wyll brynge forthe in the cause / I doubte nothyng but that I shall make the trouthe so euydent that you all will with one assent approue it / & knowlege that ye haue ben hitherto maruelously deceyued in your oppynyon / and somdele to alleuiate your myndes / ye shall vnderstande that I am nat my selfe author of the thyng / but it is the mynde & saynge of the excellent & moost highly named philosopher Plato / whiche was vndoubted so famouse a clerke / so discrete a man / and soo vertuouse in all his dedes / that ye may be sure he wold speke nothīg but it were on a right perfyte ground / and

that the thynges were of it selfe very expedient / thoughte peradventure it shewe ferre otherwise at the fyrst herynge.

¶ In all prefaces of preambles must be good heed taken that they be nat to ferre fet / nor to longe.

¶ These affectuouse wordes / I reioyce / I am sorye / I meruaile / I am glad for your sake / I desire / I fere / I pray god / and such other lyke / be very apte for a preface.

¶ Of the seconde place of a preface / called Attencion.



He herers shall be made attent or diligent to giue audience / yf the oratour make promyse yt he will shew them new thynges / or els necessary or profita[-]
ble / or yf he say yt it is an harde mater that he hath in handelynge / or els obscure & nat easy to be vnderstād / except they gyue right good attendaunce.

¶ wherfore it is expedyent that yf they wyll haue the percepcion of it / that they gyue a good eare. But as concernyng the newnesse or profyte of the mater / it maketh nat all onely ye herer to gyue a good ere (which thyng is called attencion) but also maketh hym well wylllynge for to be present / whiche is beneuolence.

¶ Docilite.



Ocilite whereby we make the mater playne & easy to be perceyued / is nat greatly required in this kynde of oracion / for it is belonging properly to derke and obscure causes / in whiche we must p[ro]-myse that we wyl nat vse great ambages / or to go (as mē say) roūde about the bussh / but to be short and playne.

¶ Of narracion whiche is the seconde p[ar]te of an oracion.

¶ The Narracion or tale wherin p[er]sones are prayed / is the declaryng of theyr lyfe & doynge after the fasshion of an historie. The places out of the whiche it is sought are: The persones byrthe. His chyldhode. His adolescencie. His mannes state. His old age. His dethe and what foloweth after.



In his byrthe is consydered of what stocke he came / what chaū[-]sed at the tyme of his natiuite or nighe vpon / as in the natiuite of Christe shepeherdes hard angelles synge.

¶ In his chyldhode are marked his bryngynge vp and tokens of wysdome cōmyng: As Horace in his fourthe Satire sheweth / how in his chyldhode his father

taught hym by examples of suche as were
than lyuyng to flee from vice and to gyue
hym selfe to vertue.

¶ In adolescencie is considered where to
he than gyuethe hym selfe; As in the
fyrst comedie of Terēce one Simo telleth
his seruaūt Sosia / that though all yonge
men for the more parte gyue them selfe to
some peculiere thyng / wherin they sette
theyr chiefe delyght / as some to haue goo-
dely horses / some to cherysshe houndes for
huntyng / & some are gyuen onely to theyr
bookes / his sone Pāphilus loued none of
these more one thā an other / and yet in al
these he exercised hym selfe mesurably.

¶ In mannes state and olde age is noted
what office or rule he bare among his citi-
sens / or in his cōtre / what actes he dyd /
how he gouerned suche as were vnd[er] him /
howe he p[ro]spered / & what fortune he had in
suche thyng[e]s as he went about. Example
here of is in Saluste / whiche cōpareth to[-]
gether Cato and Cesar / sayng that both
theyr stocke / age & eloquēce / were almoost
lyke & egall / theyr excellēcie & greatnes of
spirite & wytte was also lyke & egal / & lyke
fame & worshyppe had they both attayned
howe be it nat by a lyke waye. Cesar was
had ī great estimacion for his benefites &
& liberalite. Cato had gottē hī a name for
his p[er]fight & vpright lyuyng. Cesar was
praysed for his gentilnes and pitie. Cato
was honored for his earnestnes and surete.

¶ The tother wanne moche bruyt by gy[-]
uynge large gyftes / by helpynge suche as
were in dystresse / and by forgyuyng of tres[-]
passes done agaynste hym. Catons fame
dyd sprede because he wold neither be for-
gyuen of none offence / neither forgiue non
other / but as any man had deserued / so to
cause him to be delt with. In the one was
great refuge to suche as were in mysery:
In the other was sore punisshment & per-
nicion to mysdoers & euyll transgressours
of the law. Briefly to conclude it was all
Ceazars mynde and pleasure to labour di-
ligently night and day in his frendes cau[-]
ses / to care lesse for his owne busynes thā
for theyrs / to deny nothing that was wor[-]
thy to be asked / his desyre was euermore
to be in warre / to haue a great hoost of mē
vnder his gouernaunce / that by his noble
and hardy faictes his valyantnes myght
be the more knowen and spred abroad.

Cōtraryly all Catons study was on tem[-]
peraūce / and to do in no maner otherwyse
than was conuenient & fyttynge for suche
a man as he was / and chiefly he sette his
mynde to seuerity / he neuer made no com[-]
parison with the riche man in richesse / nor
with the myghty man in power. But yf
nede required / with the hardy mā in bold-
nes / with the temperate in moderacion /
with the good man in innocency & iust dea[-]
ling. He cared not for the name / it was suf-
ficiēt to hym to haue the dede / & so / the lesse
he cared for glorye / the more alwayes he
opteyned. Many suche comparisons ve-

ry profitable for this intēt / are also in Plu[-]
tarche in his boke of noble mennes lyues.

¶ A goodly ensāple of this place is in the
oracion that Hermola[us] Barbarus made
to the emperour Frederike and Maximi-
lian his son / which for bicause it is so long
I let it passe. ¶ A like ensample is in Tul-
lies oracion / that he made to the people of
Rome for Pompeyus / to be sente agaynst
Mithridates.

¶ Some there be that deuide the [landes](#)
of persones into thre kindes of goodes / be-
gynnyng the narracion at them / whiche
thyng our author doth nat greatly com-
mende / but rather in rehersyng of any per[-]
sones dedes / yf there can nat be kept an or-
der of historie / and many thynges must be
spoken. It were after his mynde best to
touche fyrst his actes done by prudence / &
next by iustice / thirdely by fortitude of the
mynde / and last by temperaunce / and so to
gather the narracion out of this foure car-
dinall vertues. As if one shuld praise saint
Austen / after that he hath spoken of his pa[-]
rentele and bryngynge vp in youthe / and
is come to the rehersale of his actes / they
may be conueniently distributed into the
places of vertues. On this maner did Tul[-]
ly prayse Pompey.

¶ I suppose (sayeth he) that in hym that
shulde be a hed capitayne ouer a great ar-
my / ought to be foure thynges. Knowlege
of werre / valiantnes / auctoritie / & felicitie.

¶ Here is to be noted that in rehersynge any persons actes / we may haue our chief respecte to some peculiere and principall vertue in hym / enlargynge and exaltnge it by amplificaciō in maner of a digressiō.

¶ Our author in this worke maketh no mencyon of the last place that is dethe and suche thynges as folowe after / but in an other greater work he declareth it thus briefly. ¶ The dethe of the persone hathe also his praises / as of suche whiche haue ben slayne for the defence of theyr contrey or prince.

¶ A very goodly ensample for the handelynge of this place is in an epistle that An[-]gele Policiane writeth in his fourth boke of epistels to Iames Antiquarie of Laurence Medices / howe wysely and deuoutly he dysposed hym selfe in his dethe bed / and of his departynge / and what [chann\[-\]ced](#) at that tyme.

¶ And so to conclude an oracion Demonstratiue / wherein persones are lauded / is an historycall exposicion of all his lyfe in order. And there is no difference betwene this kynde and an history / saue that in histories we be more brieue and vse lesse curiositie. Here all thynges be augmēted and coloured with as moche ornamentes of eloquence as can be had.

¶ Confirmacion of our purpose / and confutyng or reprouynge of the contrarye / whiche are the partes of contencion / are

nat requisite in this kynde of oracion / for
here are nat treated any doubtfull ma-
ters / to whome contencion pertaineth.

Neuer the lesse / somtyme it happeneth
(howbeit it is seldome) that a doubte may
come / which must be either defended / or at
the leest excused.

¶ Example. 

T He frenche men in olde tyme
made myghty warre agaynste
the Romaines / and so sore be-
sieged them that they were by compul-
sion constrained to fall to composition
with the frenche men for an huge summe
of golde / to be payed to them for the bre-
kyng of the siege / but beyng in this ex-
treme misery / they sent for one Camillus /
whome nat very longe afore they had ba-
nished out of the citie / and in his absence
made hym dictatour / which was the chie-
fest dignitie amonge the Romaines / and
of so greate auctoritie / that for the space of
thre monethes / for so long dured the office
moost cōueniently / he might do all thyng
at his pleasure / whether it concerned deth
or no / nor no mā so hardy ones to say nay
against any thyng that he dyd / so that for
the space he was as a kynge / hauynge all
in his owne mere power. Now it chaūced
that while this summe was in payenge / &
nat fully wayed / Camillus of whome I
said afore / that being in exile he was made
dictatour / came with an army / and anone

bad cease of the payment / & that eche party shulde make redy to bataile / and so he vainquished the frenche men.

¶ Now yf one shulde praise hym of his noble faites / it shuld seme that this was done contrary to the law of armes / to defait the frenche men of the raumsom due to them / syns the compacte was made afore / wherfore it is necessary for the oratour to defēde this dede / & to proue that he did nothyng contrary to equitie. For the whiche purpose he hathe two places. One apparent / whiche is a comon sayenge vsurped of the poete. *Dolus [au](#) virtus quis in hoste requirat.* That is to say / who will serche whether yē dede of enemy against enemy be either gile or pure valiantnes? But for that in warre law is as well to be kept as in other thinges. This sayeng is but of a feble groude. The other is of a more stronge assuraūce / whiche Titus Liuius writeth in his fyfte boke from the buildyng of Rome / where he reherceth this history now mencioned / and that answe is this / that the cōpacte was made to paye the foresayd raunsome after that Camillus was created dictatour / at what time it was nat lawfull that they whiche were of ferre lesse auctoritie / ye & had put them selfe holy in his hande / shuld entemedle them with any maner of treatise without his licence / & that he was nat bounde to stande to theyr bargayne. The whiche argumente is deducte out of two circumstaunces / whereof one is the tyme of the makynge of the compacte / and

the other / the persons that made it / which
two circumstaunces may briefly be called
whan / and who. ¶ Likewise yf an oracion
shulde be made to the laude of saint Pe-
ter / it behoueth to excuse his denyenge of
christe / that it was rather of diuine power
and wyll: than otherwise / for a comfortable
example to synners of grace yf they repēt.

¶ This is the maner of handelynge of an
oracion demonstratiue / in whiche the per-
son is praised.

¶ The author in his greater worke decla[-]
reth the facion by this example.

¶ If one wolde praise kynge Charles / he
shulde kepe in his oracion this order.

Fyrst in declarynge his parentele / that he
was kynge Pipines sone / whiche was the
fyrste of all kynges of [Frannce](#) named the
moost christen kynge / and by whom all af-
ter hym had the same name / and [Nephien](#)
to Martell / the moost valiauntest prynce
that euer was. Nexte / his bryngynge vp
vnder one Peter Pisane / of whom he was
instructe bothe in Greke and Latin. Thā
his adollessencie / whiche he passed in excer-
cise of armes [vnder in](#) his fader in y^e war-
res of Aquitaine / where he lerned also the
Sarazynes tongue.

¶ Beynge come to mannes state / & now
kyuge of Fraunce / he subdued Aquitayn /
Italye / Swauelande / and the Saxones.
And these warres were so fortunate / that

he ouercam his aduersaries more by aucto[-]
ritie and wisdom than by effusion of blode.

¶ Also many other notable examples of
vertue were in hym in that age / specially
that he edified the vniuersitie of Paris.

¶ Here may by digressiō be declared how
goodly a thyng lernynge is in Prynces.
Chiefly suche condicion apperteyneth to
vertue and good lyuynge.

¶ Here may be also made comparison of
his vertues in warre / and of other agre-
ynge with peace / in the whiche (as his hi-
story maketh mencyon) he was more ex-
cellent. For his chiefe delyte was to haue
peace / and agayne he was so gentyll and
so mercyfull / that he wolde rather saue
euyn suche as had don hym great offence:
and had deserued very well for to dye / thā
to dystroye theym / thoughe he might do it
conueniently.

¶ Besyde this / he was so greatly enfla-
med in the loue of god and his holy chirch /
that one Alcuine a noble clerk of England
was continually with hym / in whose prea[-]
chyng and other gostely comunicacion
he had a chiefe pleasure. His olde age he
passed in rest and quyetenes fortunately /
saue for one thyng / that his sonnes agreed
euyll betwene them.

¶ After his decease reigned his son / holy
saint Lewes / and so the folowynges of his
dethe were suche that they could be no bet-

ter / and a very great token of his good and
vertuouse lyuynge. For yf an yll tree can
brynge furthe no good fruite / what shall
we suppose of this noble kynge Charles /
of whome cam so vertuouse and so holy a
son? Truely me thynketh that hither may
be nat incōueniently applied the sayenges
of the gospels / by theyr frutes you shall
know them.

¶ Of an oracion Demonstratiue /
wherein an acte is praysed.

WHan we wyll prayse any maner of
dede / the moost apte preamble for
that purpose shall be to say that the
mater perteyneth to the commodities of
them whiche here vs.

 ¶ Example.

WHan the Romaines had expelled
theyr kynge / whome the historiciens
call Tarquine the proude / out of the
citie / and fully enacted that they wolde ne[-]
uer haue kynge to reigne more ouer them.
This Tarquin[us] went for aide and socour
to the kynge of Tuscaye / whiche whan he
could by no menes entreat the Romaines
to receiue agayn theyr kyng / he cam with
all his puissaunce against the citie / & there
long space besieged the Romaines / by rea[-]
son wherof / great penury of whete was in
the citie / & the kynge of Tuscay had great
trust / that continuyng the siege / he shulde

within a litle lenger space compell the Ro[-]
maynes through famine to yelde thēselfe.

¶ In the meane season a yong man of the
citie named Gaius Mucius / came to the
Senatours and shewed them that he was
purposed yf they wolde gyue hym licence
to go furthe of the citie to do an acte that
shuld be for theyr great profite and welth /
whereupon whan he had obtained licence /
priuely / with weapō hyd vnder his vesture
he cam to the Tuscans campe / & gate hym
among the thickest / nigh to the tent where
as the kyng sat with his chaunceller / pay-
enge the sowdiers the wages. And bicause
that they were almoost of lyke apparell / &
also the chaunceler spake many thynges
as a man beyng in auctoritie / he coulde
nat tell whether of theym was the kynge /
nor he durst nat aske / leest his demaunde
wolde haue bewrayed hym / for as for lan-
guage they had one / & nothyng was diffe-
rent / for bothe Tuscains & Romaines were
all of Italye / as in tymes past / Englande
hathe had many kynges / though the lan-
guage & people were on. And thus beyng
in doubt whether of them he myght steppe
vnto / by chaunce he strake the chaunceller
in stede of the kyng / and slew hym / wher-
fore whan he was taken and brought be-
fore the kyng / for to punyssh his hande
that had failed in takyng one for an other /
and agayn to shew the kyng how litle he
cared for his menaces / he thrust his hande
into the fire / which at that time was there
prepared for sacrificy / & there in the flame

let it brenne / nat ones mouynge it. The
kyng greatly marueylynge at his audaci[-]
tie & hardy nature / cōmended hym greatly
thereof / and bad hym go his way free: For
the whiche (as though he wolde make the
kyng a great amendes) he fayned that .iii.
C. of the noblest yonge men of Rome had
conspyred to gyther in lyke maner euery
one after another vnwar[e]s to slee hym / and
all to put theyr bodies and liues in hasard
tyll tyme shulde chaunce that one myght
acheue theyr entent. For fere whereof the
kyng furthwith fell at a pointement with
the Romaines / and departed. The yonge
man afterwarde was named Sceuola /
whiche is as moche to say in Englyssh as
lefte hāded. For as I haue reherced afore /
he brente his right hande / so that he had
lost the vse therof.

¶ IF any oratour wolde in an oracyon
commende this dede / he myght conueni-
ently make the preface on this facion.

T Here is no doubte my lordes
& maysters of Rome: but that
the remēbraunce of Sceuolaes
name is very pleasant vnto your audiēce /
whiche with one act that he dyd / endewed
your citie with many and greate commo-
dytees. &c[etera].

¶ This maner of preface is moost conue[-]
nyent and best annexyd to suche maner of
oracyons demonstratiues.

¶ Neuer the lesse it is lawfull for vs to
take our preface (yf it be our pleasure) oute
of some circumstaunce / as out of the place
that our oracion is made in / or out of the
tyme that we speke in / or els otherwyse /
accordynge as we shall haue occasyon /
As Tullie / in the oracyon that he made
for the restitucyon of Marcus Marcel-
lus / in the whiche he praiseth Cezare for
the callyng home of the sayd Marc[us] mar-
cellus out of exyle / he taketh his pream-
ble out of the tyme and Cezares persone /
begynnyng thus.

THis daye my lordes Senatoures
hath made an ende of the longe sci-
lence that I haue kepte a great while / nat
for any fere that I had / but part for great
sorow that was in me / & partly for shame /
this day as I sayd hath taken away that
longe scilence / ye / and besyde that of newe
brought to me lust & mynde to speke what
I wolde / and what I thought moost expe[-]
dient / like as I was afore wont to do. For
I can nat in no maner of wyse refrayne /
but I must nedes speke of the great meke-
nes of Cezare / of the graciousnes that is
in hym / so habūdant and so great withall /
that neuer afore any suche hath ben wont
to be sene or herde of / and also of the excel-
lent good moderaciō of all thynges which
is in hym that hathe all in his owne mere
power. Nor I can nat let passe his excellēt
incredible / and diuine wisdom vnsspoken
of / afore you at this tyme.

¶ Of the Narracion.

IN this kynde we vse but selden hole narracions / oneles we make our oracion afore them that know nat the history of the acte or dede whiche we be aboute to prayse. But in stede of a narracion we vse a proposicion / on this maner.

AMonge all the noble deedes Cezare that ye haue done / there is non that is more worthy to be praysed than this restitution of Marke Marcell.

¶ Of Confirmation / whiche is the fyrst parte of Contencion.

THe places of confirmation are honesty / [p\[er\]fite](#) / lightnes / or hardines of the dede. For after the prohome of the oracion and the narracion / than go we to the prouynge of our mater. Fyrst shewynge that it was a very honest dede. And next / that it was nat all only honesty: but also profitable. Thirde as concerning the easines or difficulty / the praise therof must be considered / parte in the doer / part in the dede. An easy dede deserueth no great praise / but an harde and a ieopardouse thyng / the soner and the lightlier it is acheued / the more it is to be lauded.

¶ The honesty of the cause is fet from the nature of the thyng y^t is spoken of / which place lieth in the wytte of the oratour / and may also be fet out of the philosophers bo[-]

kes. It is also copiosely declared of Rhetoriciens / and very compēdiouſly handled of Erasmus in his booke / entituled of the maner and crafte to make epistels / in the chapitre of a persuaſyng epistle. The profyte of the dede / or the commoditie may be fet at the circumſtaunce of it. Circumſtaū[-]ces are theſe / what was done / who dyd it / whan / where it was done / among whom / by whoſe helpe.

¶ As if one wolde praiſe Sceuolaes acte / of the whiche mencion was made afore / he may.

¶ Whan he cometh to the places of contention / ſhew fyrſt how honeſt a dede it is for any man to put his lyfe in ieopardy for the defence of his countrey / whiche is ſo moche the more to be commended that it cam of his owne minde / and nat by the inſtigacion of any other / and how profitable it was to the citie to remoue ſo ſtrong and uiſſaunt an enemy by ſo good and crafty policy / what tyme the citie was nat well aſſured of all mennes myndes that were within the walles / conſiderynge that but a lytle afore many noble yonge men were detecte of treaſon in the ſame buſines. And than alſo the citie was almoost deſtitute of vitayles / & all other commodities neceſſary for the defence.

¶ Likewise eaſynes or difficultie are conteyned in the circumſtaunces of the cauſe. As in the example now ſpoken of / what an harde enterpriſe it is for one man to entre

into a kynges armye / and to come to the
kynges paulion in the face of his souldi-
ers to aduenture to slee hym.

¶ Of the seconde parte of con-
tencion / called confutacion.

C Onfutaciō is the soilyng of suche
argumentes as maye be induced
agaynst our purpose / which part
is but lytle vsed in an oracion demonstra-
tiue. Neuer the lesse / somtyme may chaūce
a thyng that must be either defended or els
at the leest excused. As yf any man wolde
speke of Camillus dede / wherby he recoue-
red his contrey / and delyuered it from the
handes of the Frenche men. ¶ Here must
be declared that the bargayne made afore
was nat by Camillus violate.

¶ The places of confutacion be contrary
to the places of confirmacion.

¶ Of the conclusion.

T He cōclusion is made of a brief
enumeracion of suche thynges
that we haue spoken of afore in
the oracion / & in mouynge of affections.

¶ In delectable thinges or suche thinges
that haue ben well done / we moue our au-
dience to reioice thereat / and to do lyke.

¶ In sad thynges and heuy / to be sorry for
them. In yll and peruerse act[e]s / to beware

that they folowe nat them to theyr great
shame and confusion.

¶ Of an oracion demonstratiue / wherein
are praised neither persones nor actes /
but some other thynges / as religion /
matrimony / or suche other. 

T He best begynnyng wyll be if it
be taken out of some high praise
of the thyng. But a man may
also begyn otherwyse / eyther at his owne
persō or at theyrs afore whom he speketh /
or at the place in the whiche he speketh / or
at the season present / or otherwise / as hath
afore ben specified / and here must we take
good hede that yf we take vpō vs to praise
any thyng that is no praise worthy / than
must we vse insinuacion / & excuse the turpi[-]
tude / either by examples or by argumēt[e]s /
as Erasmus doth in his epistle prefixed a-
fore his oracion made to the prayse of fo-
lisshnes / of the whiche I haue let passe the
trāslaciō bicause y^e epistle is sōwhat long.

¶ The narracion.

IN this maner of oraciō is no nar[-]
racion / but in stede therof the Rhe[-]
toriciens all only propose the ma[-]
ter. And this proposicion is in the stede of
the narracion.

¶ A very elegāt example is in the oracion
that Angele Policiane made to the laude
of histories / whiche is this. Among all ma[-]

ner of wryters by whom either the Greke
tongue or the latine hath ben in floure and
excellence / without doubte me semeth that
they dyd moost profyte to mankynde / by
whom the excellent dedes of nacions / prin-
ces / or valiant men haue ben truely descri-
ued and put in cronicles.

¶ Likewise yf a man praise peace / & shewe
what a commodiouse thyng it is / he may
make suche a proposicion.

A Monge all the thynges whiche per[-]
teine to mānes commoditie / of what
someuer condicion or nature so euer they
be / non is so excellent and so worthy to be
had in honour and loue / as is peace.

¶ The confirmacion.

T He places of confirmacion be in
this oracion. The same yt were
in the other (of whome mencion
was made afore / honesty / profite / easynes /
or difficulty. Honesty is considered in the
nature of the thyng / also in the persones
that haue excercysed it / and the inuenters
thereof. And in the auctour of it. As in the
laude of matrimony be considered the auc[-]
tour thereof / whiche was god hym selfe /
the antiquite that it was made in the fyrst
begynnyng of the worlde / and continued
(as reason is) to this hour in great honour
and reuerēce. The persones that haue vsed
it / were bothe patriarches / as Abraham.
Prophetes / as Dauyd. Apostels / as saynt

Peter. Martyrs / saynt Eustache. And cō-
fessours / as saynt Edward. And (whiche
thyng was fyrst proposed) the nature ther-
of is suche / that without it: man shulde be
like vnto beest / oneles all generacion shuld
be put aparte. And the commaūdement of
almighty god nat regarded / who bad man
and woman shulde engender & multiply.

¶ Profite and easines is considered in the
circumstaunces. Examples may be taken
out of Policians oraciō / made to the laude
of histories—And two oracions of Erasm[us] /
one to the laude of phisike / and an other to
the laude of matrimony.

¶ Of confutacion.

Confutacion hath contrary places to con-
firmacion.

¶ Of the conclusion.

THe periode or conclusion stan-
deth in the briefe enumeracion
of thynges spoken afore / and in
mouyng the affections / as hath ben aboue
expressed.

¶ Of an oracion deliberatiue.

AN oraciō deliberatiue is by the
which we persuade or dissaude
any thyng / & by the whiche we
aske / or whereby we exhort any man to do
a thyng / or els to forsake it / and this kyn-

de of oracion is moche in vse / nat onely
in ciuil [ematers](#): but also in epistels.

¶ Of the preamble.

WE may begynne our oracion in this
kynde / eyn lyke as we dyd in an ora[-]
cion demonstratiue / but moost aptly
at our office or duety / leest some men wolde
thynke that we dyd it more of a priuate af-
fection for our owne commoditie and plea[-]
sure: than for any other mannes profyte.

¶ And in this maner Salust in his boke
of Catheline bringeth in Cezare / beginnyng
an oracion. But let vs here now what Ce[-]
zar sayeth.

ALl men my lord[e]s Senatours which
syt concellynge vpon any doubtfull
mater / must be voyde of hatred / frendshyp /
anger / pitye / or mercye. For where any of
these thynges bere a rule / mannes mynde
can nat lightly perceyue the truthe. &c[etera].

¶ Or els we may begyn at the greatenes
of the mater / or daunger of the thyng that
we speke of / as in the fyfte boke of Liuius.
Camillus maketh the preamble of his ora[-]
cion thus.

MY maysters of this Citie of Ardea /
which haue ben alwayes myne olde
frendes / and now (by reason of myne exyle
out of Rome) my new neighbours and ci-
tizens. For I thank you of your goodnes
you haue promysed that it shuld so be / and

on the other side my fortune hath constray[-]
ned me to seke som new dwellynge out of
the citie where I was brought vp & enha-
bited. I wolde nat that any of you shulde
thynke that I am now come amonge you
nat remembrynge my condicion and state /
but the comō ieopardy that we be all now
in / wyll compell euery man to open and
shew the best remedy that he knoweth for
our socoure in this greate fere & necessity.

¶ Nat withstandynge this / a man may
take his begynnynge otherwyse / after any
of the facions afore recited / if he lyst.

¶ Tully in the oracion / wherin he aduised
the Romaines to make Pompey theyr
chiefe capitaine against Mithridates and
Tigranes / kynges of Ponthus & Arme-
ny / taketh in the preface beneuolence from
his owne persone / shewynge by what oc-
casion he myght lafully gyue counsell to
the Romaines / bycause was electe Pretor
of the citie. we may also touche our aduer-
saries in the preface / or els we may touche
the maners / either of som seuerall persons /
or of the commons in generall. As in the
oracion that Porci[us] Chato made agaynst
the sumptuousnes of the women of Rome /
thus begynnynge.

IF euery man my lordes and maisters
of this citie wolde obserue and kepe
the ryght and maiestye of a man agaynst
his owne wife / we shuld haue ferre lesse en-
combrance now with the hole thronge thā
we haue. But now our fredome and lyber-

tie is ouercome within our owne dores by
the importunatnes of our wyues / & so au-
dacitie taken therof here troden vnder the
fete / and oppressed in the parliamēt house:
And bycause we wold nat displease no mā
his owne wyfe at home: here are we now
combred with all / gathered to gyder on a
hepe / and brought in that takynge that
we dare nat ones open our lyppes against
them. &c[etera].

¶ We may also begyn at the nature of the
tyme that we speke in / or at the nature of
the place / or at any other circumstaunce or
thyng incident. As Liuius in the .ix. boke
of his fourthe decade agaynste the feestes
that the Romaines kept in the honour of
the ydolyssh god Bacchus / begynneth his
oracion at prayenge on this wyse.

THe solempne makynge of prayers
vnto the goddes was neuer so apte
nor yet so necessary in any oracion as it is
in this / whiche shall shew and admonysshe
you that they be very and ryght goddes /
whom our elders haue ordeyned to be wor[-]
shypped / adoured / and prayed vnto.

¶ Briefly in all prefaces belongynge to
oracions deliberatiues the office of the per[-]
sone: and the necessarye or commoditye
of the matter that we treate of are consy-
dered. 

¶ The narracion.

IN oraciōs deliberatiues we vse very
seldome narracions / but for the more
parte in stede of them we make a brief pro[-]
posicion cōteinyng the sūme of our entent.
As now adayes nothing is so necessary as
to labour to brynge these dissencions that
be in the chyrche to a perfecte vnity & con-
corde / that accordyng to Christes sayng[e]s /
there be but one shepeherde and one folde.
Neuertheles we vse somtyme briefe [narra\[-\]
ciions](#) / whā y^t som thyng hath ben don all
redy of y^t that we giue our coūcell vpō / as
in the abouesayd oracion y^t Tuli made for
Pōpey / where he maketh this narracion.

GReat & very perillous warre is made
bothe agaynst your tributours / and
also thē that bothe cōfederate with you: &
by you called your felowes / whiche warre
is moued by two ryght myghty kynges /
Mithridates & Tigranes. &c. ¶ After this
maner is a narracion in the oraciō y^t Ha-
niball made to Scipio / & is cōteined in the
x. boke of y^e .iii. decade of Liui[us] / right pro-
per & elegant / without any preface begyn-
nyng his narracion thus.  ¶ If it hath
ben ordeyned by my fortune and desteny
that I whiche first of all y^e Carthaginors
began warre with the Romyans / & which
haue almoost had the victory so often in
myne hādes / shuld now com of myne owne
mynde to aske peace. I am glad that for-
tune hathe prepared that I shulde aske it
of you specially. And amonge all your no-
ble [landes](#) this shall nat be one of the leest
that Haniball gaue ouer to you / to whom

the goddes had gyuen afore the vycторыe
ouer so many capitains of the Romainys /
& that it was your lucke to make an ende
of this warre / in the which the Romainys
haue had farre mo euyll chaunces thā we
of Carthagene. And whether it were my
desteny or chaūce y^t ought me this skorn-
full shame. I which began the warre whā
your father was Consull / and after ioyned
bataile with hym whan he was made Ca-
pitayne of the Romainys army / must now
come vnarmed to his son to aske peace of
hym. It had ben best for bothe parties yf
it had pleased the goddes to haue sent our
fore faders that mynde / that you of Rome
wolde haue ben content with the Empyre
of Italy / and we Carthaginoys with Af-
frike. For neither Sicil nor Sardinia can
be any sufficēt amendes to either of vs for
so many naueis / so many armies / so many
and so excellent capitaines lost in our war-
res betwene vs / but thynges passed / may
soner be blamed than mended. We of Car-
thagene (as touchynge our parte) haue so
couetyd other dominions / that at lengthe
we had busines ynough to defende our pos[-]
sessions. Nor the warre hath nat ben only
with you in Italy or with vs onely in Af-
fryke: but at the pleasure of fortune / som-
tyme here and som there / in so moche that
you my maisters of Rome haue sene y^e stā[-]
derdes and armes of your enemies harde
at your walles and gates of the citie. And
we on the other syde haue herde the noyse
out of your campe into our citie.

¶ After the narracion ought to folowe immediately the propoſicion of our coun- cell or aduiſe. As after the narraciō of Ha- niball afore reherced / foloweth the propo- ſicion of his purpoſe thus.

That thyng is now entreated while fortune is fauourable vnto you / that we ought moost to abhorre / and you sure- ly ought aboute all thynges to deſyre / that is to haue peace. And it is moſt for the pro[-] fyte of vs two / whiche haue the mater in handelyng that peace be had. And ſure we be / that what ſo euer we agree vppon / our cities wyll ratifie the ſame.

¶ Next foloweth the confirmation of tho thynges y^t we entende to perswade / which muſt be fet out of the places of honeſty / pro[-] fite / eaſines / or difficulty. As if we will per[-] ſuade any thyng to be done / we ſhall ſhew that it is nat only honeſt & laudable: but al[-] ſo profytable & eaſy ynough to perfourme. Or if we can nat choſe but graūt that it is harde / yet we ſhall ſhew that it is ſo honeſt a dede / ſo worthy praiſe / & beſydes ſo great cōmodity wyll come therof / that the hard- nes ought in no wiſe to fere vs: but rather be as an inſtigacion to take the thyng on hande / remembryng the greke prouerbe. [*Scisnola ta nala*](#) / that is to ſay / all excellent & cōmēdable thyng[e]s be hard & of difficulty.

¶ In honeſty are cōprehēded all vertues / as wyſdō / iuſtice / due loue to god / & to our parentes / liberality / pity / conſtāce / tempe- rance. And therefore he that wyll for the cō[-]

fyrmyng of his purpose declare & proue yt
it is honest & cōmendable yt he entēdeth to
persuade hym: behoueth to haue perfyte
knowlege of y^e natures of vertues. And al[-]
so to haue in redy remembraūce sentences
bothe of scripture & of philosophy / as ora-
tours & poetes / & besyde these / examples of
historyes / for [garnyssshyng](#) of his maters.

¶ As cōcernynge the place of vtilitie / we
must in all causes loke if we may haue any
argumētes wherby we may p[ro]ue that our
coucell is of suche necessity / that it can nat
be chosen but they must nedes folow it / for
tho argumētes be of farre greater strēgth
than they yt do but onely proue the vtility
of y^e mater. But if we cā haue no suche ne-
cessary reasōs / thā we must serche out ar-
gumētes to p[ro]ue our mynde to be p[ro]fitable
by circūstances of the cause. In like maner
to persuade a thyng by the easines therof /
or dissuade it by the difficulty of the thing /
we must haue respect to possibility or īpossi[-]
bilite / for these p[ro]ues are of strenger nature
thā the other / & he yt wyll shew yt a thyng
may be done easely: must presuppose y^e pos[-]
sibilite therof. As he on the other side that
wyll p[er]suade a thyng nat to be done / yf he
shew & manifest yt it is impossible / argueth
more strōgely thā if he could but only p[ro]ue
difficulty in it / for as I sayd / many thyng[e]s
of difficulty yet may be the rather to be ta-
ken on hande / that they may get thē that
acheue them the greater fame and prayse.
And these argumentes be fet out of the cir[-]
cūstances of y^e cause / yt is to say / the time /

the place / the doers / the thynges it selfe / the
meanes whereby it shulde be done / the cau[-]
ses wherefore it shulde be done or nat / the
helpes or impedimētes that may be ther-
in. In this purpose examples of histories
are of great efficacy.

¶ The confutacion is the soilyng and re-
fellyng of other mēnes sayeng[e]s that haue
or might be brought against our purpose /
wherefore it consisteth in places contrary
to the places of confirmaciō / as in p[ro]uyng
the sayenges of the contrary part / neither
to be honest nor profitable / nor easy to per-
forme / or els vtterly impossible.

¶ The conclusion standeth in two thyn-
ges / that [is is](#) to say / a briefe and compen-
diouse repetyng of all our reasons that we
haue [brought](#) for vs afore / and in mouyng
of affections. And so dothe Ulysses con-
clude his oracion in the .xiii. boke of Oui-
des metamorphosy.

¶ Of the thyrd kynde of ora-
cions / called Iudiciall. 🐼

O Racions iudiciall be that longe
to controuersies in the lawe and
plees / which kynde of oracion in
olde tyme longed onely to Iudges & men
of law / but now for the more parte it is ne-
glecte of them / though there be nothyng
more necessarye to quicken them in crafty
and wyse handelyng of theyr maters.

¶ In these oracions the fyrste is to fynde out the state of the cause / whiche is a short proposicion / conteynyng the hole effect of all the controuersies. As in the oracion of Tulli / made for Milo / of y^e which I made mencion in the begynnyng of my boke. The state of the cause is this. Milo slewe Clodius lawfully / whiche thyng his aduersaries denyed / and yf Tully can proue it / the plee is wonne.

¶ Here must be borne away that there be thre maner of states in suche oracions.

¶ The fyrst is called coniecturall. The seconde / legitime. The thirde / iudiciale / and euery of these hathe his owne proper places to fet out argumentes of them / wherefore they shall be spoken of seuerally. And fyrste we wyll treate of state coniecturall / whiche is vsed whan we be certayne that the dede is done / but we be ignorant who dyd it / and yet by certayne coniectures we haue one suspecte / that of very lykelyhode it shulde be he that hathe commytted the cryme. And therefore this state is called con[-]iecturall / bicause we haue no manifest p[ro]fe / but all onely great lykelyhodes / or as the Rhetoriciens call them / coniectures.

¶ Example.

T Here was a great contencion in the Grekes army afore Troye betwene Ulisses and Ajax / after the dethe of Achilles / which of them shulde haue his armour

as nexte to the sayd Achilles in valiaunt-
nes. In whiche controuersye whan the
Grekes had Iuged the sayd armour vnto
Uliesses / Ajax for very great disdayne fell
out of his mynde / & shortly after in a wode
nygh to the hooste / after he had knowen
(whan he cam agayne to hym selfe) what
folyssh pranks he had played in the tyme
of his phrenesy / for sorow & shame he slewe
hym selfe. Sone vpon this dede cam Uli-
ses by / whiche seyng Ajax thrust thughe
with a swerde: cam to hym / and as he was
about to pull out the swerd / the frendes of
Ajax chaūced to com the same way / which
seyng theyr frende deed / and his olde ene-
my pullyng out a swerde of his body / they
accused hym of murder.

¶ In very dede here was no profe. For of
truthe Uliesses was nat gylty in the cause.
Neuer theles the enuye that was betwene
Ajax and hym: made the mater to be nat a
lytle suspect / specially for yt he was foude
there with the sayd Ajax alone / wherefore
the state of the plee was coniecturall / whe[-]
ther Uliesses slew Ajax or nat.

¶ The preface.

THe preface is here euyn as it is in
other oracions. For we begyn accor[-]
dyng to the nature of the cause yt we haue
on hāde / either in blamyng our aduersary /
or els mouynge the herers to haue pity on
our client. Or els we begyn at our owne p[er]-
sone / or at the prayse of the Iuge. &c[etera].

¶ The narracion.

THe narraciō or tale is the shewyng
of the dede in maner of an historye /
wherin y^e accuser must craftly entermēgle
many suspicions which shall seme to make
his mater p[ro]uable. As Tulli in his oracion
for Milo / where in his narracion he inten-
deth by certayn cōiectures to shew y^t Clo[-]
dius laye in waite for Milo / he in his sayd
narracion handeleth that place thus.

¶ In the meane season whā Clodius had
knowlege that Milo had a lawfull & [neces\[.\]](#)
[ry](#) iourney to the city of Lauine y^e .xiii. day
afore the kalendes of Marche / to poynte
who shuld be hed preest there / which thing
longed to Milo because he was dictatour
of that towne: Clodius sodaynely the day
afore departed out of Rome to set vppon
Milo in a lordeshyp of his owne / as after
was well perceyued. And suche haste he
made to be goyng that were as the people
were gadered y^e same day for mat[er]s wher-
in also he had great adoo hym selfe / & very
necessarye it had ben for hym to haue ben
there / yet this nat withstandyng / all other
thynges aparte: he went his way / whiche
you may be sure he wold neuer haue done /
saue onely that he had fully determined to
preuent a tyme and place conuenient for
his malicius entēt afore Miloes comyng.

¶ In this pece of Tullies narracion are
entermengled fyrst that Clodius knew of
Miloes goyng / whiche maketh the ma-

ter suspecte y^t Clodius went afore to mete with him / for this was well knowen afore that Clodi[us] bare Milo great grudge and malice. Next is shewed the place where as Clodius met Milo / whiche also gyueth a great suspicion / for it was nygh Clodius place / where he myght sone take socour / & the tother was in leest assuraūce. Thyrdly that he departed out of the city / what tyme it had ben most expedient / ye / & also greatly requisite for hym to haue ben at home. And that again maketh the mater suspect / for surely he wold nat (as Tully hym selfe saieth) in no wise haue ben absent at suche a busy tyme / onles it had ben for som great purpose / and what other shulde it seme thā to slee Milo. As surely euident it was that they buckled to gyther / and this was well knowen that Milo had a necessary cause to go furth of Rome at that tyme. Contra[-]ryly in Clodius coulde be perceyued non other occasion to departe than oute of the citie: but of lykelyhood to lye in wayte for Milo. 🐘

¶ The proposicion.

O Ut of the narracion must be gaderyd a briefe sentence / wherein shall stande the hole pithe of the cause / for Rhetoriciens put incontinent af[-]ter the narracion diuision / which is a part of contencion / & dothe bryefly shew wherin the controuersy doth stande / or what thinges shall be spoken of in the oracion. This

diuision is deuyded into seiunction and distribution.

¶ Seiunction is whan we shew wherein our aduersaries and we agree / and what it is / whereupon we stryue. As they that pleddyd Clodius cause agaynst Milo / myght on this maner haue vsed seiunction. That Milo slew Clodius: our aduersaries can nat denaye / but whether he myght so do lawfully or nat / is our controuersy. Distribution is the proposicion wherein we declare of what thynges we wyll speke / of whiche yf we propose how many they be / it is called enumeracion / but yf we do nat expresse the nombre / it is called exposicion.

¶ Example of bothe is had in the oracion that Tully made to the people that Pompeyus myght be made chiefe capitayne of the warres agaynst Mithridates and Tigranes / where after the preface and narra[-]cion he maketh his proposicion by exposicion thus.

Fyrste, I thynke it expedyent to speke of the nature & kynde of this warre / and after that of the greatnes thereof / and than to shewe how an hede or chiefe capytayne of any army shulde be chosen.

Whiche last membre of his exposicion he agayne distributeth into foure partes thus as foloweth.

TRuely this is myne opinion / that he whiche shall be a gouernour of an

hoost / ought to haue these foure propertyes in hym. The fyrste is / that he haue perfyte knowlege of all suche thynges as longeth to warre. The seconde is that he be a man of his handes. The thyrde that he be a man of suche auctoryty: that his dignity may cause his souldiers to haue hym in reuerence and awe. The fourth is that he be fortunate and lucky in all thynges that he goeth about.

¶ Tully in the oracion for Milo / propposeth all onely shewynge wherein the contro[u]uersy of the plee dyd stande on this maner as foloweth. 🐘

IS there than any thyng els yt must [e tryed](#) and iudged in this cause saue this: whether of them bothe beganne the fraye and entended to murder the tother? No surely. So that yf it can be founden that Milo went about to distroye Clodius / than he be punysshed therefore accordingly. But yf it can be proued that Clodius was the begynner and layed wayte for to slee Milo / and so was the sercher of his owne dethe / and that what Milo dyd it was but to defende hym selfe frome the treason of his enemy and the sauegarde of his lyfe: that than he may be delyuered and quyt.

¶ Of confirmacion.

He confirmacion of the accuser is fetched out of these pla-

T ces / wyll / and power. For these
two thynges wyll cause the persone
that

is accused to be greatly suspect that he had
wyll to do the thyng that he is accused of /
and that he myght well ynoughe brynge
it to passe. 

¶ To proue that he had wyll therto: you
must go to .ii. places. The one is ye qualite
of the persone / & the other is the cause that
meuyd him to the dede. The qualitie of the
person is thus handled. First to loke what
is his name or surname / and if it be nough[-]
ty to saye that he had it nat for nothyng:
but that nature had suche pryue power in
men to make them gyue names according
to the maners of euery person. Than next
to behold his contrey. So Tulli in his ora[-]
cion made for Lucius Flaccus / to unproue
the witnes that was brought against him
by Grekes / layeth vnto them the lightnes
of theyr contrey. This (sayeth Tulli) do I
say of the hole nacion of Grekes. I graūt
to them that they haue good lernyng / and
the knowlege of many sciences. Nor I de-
nye nat but that they haue a pleasant and
marueylouse swete speche. They are also
people of high and excellent quicke wyt / &
thereto they be very facundiouse. These &
suche other qualities wherein they booste
thē selfe greatly: I wyll nat repyne agaīst
it that they bere the maistry therein. But
as concernyng equitie and good consciēce /
requisite / in berynge of recorde / or gyuyng
of any wytnes / & also as touchyng faith-

fulnes of worde and promyse: truely this
nacion neuer obserued this property / nei-
ther they knewe nat what is the strength /
auctoritye / and weight therof.

¶ So to Englysshmen is attributed sūp-
tuousnes in meates & drinkes. To French
men / pryde / & delyte in new fantasyes. To
Flemmynges and Almaynes / great dryn-
kyng / & yet inuētife wittes. To Britayns /
Gascoignes / and Polones / larrecine. To
Spanierdes / agilitie. To ytaliens / hygh
wyt and moche subtilty. To Scottes / bold[-]
nes / to Irissh men / hastines. To Boemes
valiauntnes and tenacite of opinions. &c.

¶ After that to loke on his kynred / as yf
his father or mother or other kynne were
of yll disposicion / for as the tree is: suche
fruite it bereth.

¶ On this wyse dothe Phillis entwyte
Demophon / that his father Theseus vn-
curteysly and trayterously lefte his loue
Ariadna alone in the desert yle of Naxus /
& contrary to his promise stale from her by
nyght / addynge *Heredem [patria](#) perfide frau-*
dis agis. That is to saye / vntrew and false
forsworne man / thou playest kyndely the
fathers heyre / in deceytable begylynge of
thy true louer.

¶ After that we must loke vppon the sex /
whether it be man or woman that we ac-
cuse / to se yf any argumēt cā be deduct out
of it to our purpose. As in men is noted au[-]
dacity / women be comonly tymerouse.

Than nexte / the age of the persone. As in
Therence Simo speketh of his son Pam-
philus / sayeth vnto his man called Sosia /
how couldest thou know his condicions or
nature afore / whyle his age and feare / and
his maister dyd let it to be knowen.

¶ Hipermera in Ouides epistels ioine
these .ii. places of sex & age to gyther thus.

¶ I am a woman & a yong maiden / milde
& gentyll / both by nature & yeres. My soft
handes are nat apte to fiers batayles.

¶ After these folow strēgth of body / or agi[-]
lity / & quicknes of wyt / out of whiche may
be broght many reasōs to affyrme our pur[-]
pose. So Tully in his oracion for Milo /
wyllynge to proue y[at] Clodius was the be-
gynner of the fraye / sheweth that Milo
(whiche was neuer wont but to haue men
about hym) by chaunce at that tyme had
in his company certayne Musiciens and
maydens that wayted on his wyfe / whom
he had syttyng with hym in his wagen.
Contraryly Clodius that was neuer wōt
afore but to ryde in a wagen & to haue his
wyfe with him: at that tyme rode furth on
horsebacke. And where as afore he was al-
wayes accustomed to haue knaues & que-
nes in his company: he had than non but
tall men with hym / & (as who shulde say)
men piked out for the nones. ¶ To this is
added forme / as to assay yf we can haue a-
ny argument to our purpose out of the per[-]
sones face or countenance / & so doth Tully
argue in his oraciō agaynst Piso / sayeng.

¶ Seest thou nat now thou beest? doest y[o]u
nat now p[er]ceyue what is mennes cōplaynt
on thy visage? there is nō that cōplaineth
that I wote nat what Surrien & of theyr
flocke whiche be but newly crepte vp to ho[-]
nour out of the donghyll is now made con[-]
sull of the city. For this seruile colour hath
nat deceiued vs nor hery cheke balles / nor
rotten & fylthy tethe / thyne iyes / thy bro-
wes / forhed / & hole coūtenaūce / which in a
maner doth manifest mēnes cōdiciōs & na[-]
ture it hath deceiued vs. ¶ This done / we
must consyder how he hath bē brought vp
y[at] we accuse / among whom he hath lyued /
&
whereby / how he gouerneth his houshold /
& assay if we cā pyke out of these ought for
our purpose. Also of what state he is of / fre
or bond / riche or pore / beryng office or nat /
a man of good name / or otherwise / wherein
he deliteth moost / which places do expresse
mānes lyuyng / & by his lyuyng: his will &
mynde / as I wold declare more fully / saue
that in introductions men must labour to
be short / and agayne they are suche that he
that hath any perceyuyng may sone know
what shall make for his purpose / & how to
set it furthe. And therfore this shall suffyse
as touchynge the qualitie of the person.

¶ If we bere away this for a generall rule
(that what maketh for the accuser euer-
more the contrary) is sure staye for the de-
fender / yf he can proue it / or make it of the
more lykelyhood. As Tully in defendynge
Milo / layeth to Clodius frendes charges

that he had non about hym but chosē mē.
And for to clere Milo he sheweth the contrary / that he had with hym syngyng laddes and women seruantes that wayted on his wyfe / whiche maketh it of more likelihood y^t Clodius went about to slee Milo: than Mylo hym.

¶ The cause that moueth to the mischiefelyeth in two thynges. In naturall impulsion / and racionacion.

¶ Natural impulsion is angre / hatred / co[-]uetyse / loue / or suche other affections.

So Simo in Therence / whan he had sayd that Dauus (whō he had poynted to wayt vppon his sone Pamphilus) wolde do all that myght lye in hym bothe with hande and fote / rather to dysplease hym: than to please Pamphilus mynde. And Sosia demaunded why he wolde do so. Simo made aunswere by raciocinacion / sayenge / doest thou aske that? mary his vngracious and vnhappy mynde is the cause therof.

Oenon in Ouides epistles ioyneth to gyther qualitie and naturall impulsion / sayenge. *A iuuene et Cupido credatur reddita virgo?* whiche is in Englysshe. Thynke you that she that was caried awaye of a yonge man / and hote in loue / was restored agayn a mayde?

¶ Tulli in the oracion for Milo / amonge other argumētes bryngeth in one against Clodius by naturall impulsion of hatred /

shewynge that Clodius had cause to hate
Milo fyrst / for he was one of them that laboured for the same Tullyes reuocacyon
from exyle / whiche Tulli Clodius maliciously hated. Agayne that Milo oppressyd
many of his furiose purposes. And finally by cause the sayd Milo accused hym and
cast hym afore the Senate and people of
Rome. 🐷

¶ Raciocinaciō is that cometh of hope of
any commodity / or to eschew any discom-
modity. As Tully argueth in his oracion
for Milo agaynst Clodius by raciocinaci-
on to proue that it was he that layde wayt
for Milo on this maner.

IT is sufficient to proue that this cru-
ell and wicked beest had a great cause
to slee Milo / yf he wolde brynge his ma-
ters that he wēt about to passe / and great
hope if he were ones gone / nat to be letted
in his pretenced malyce.

¶ After raciocinacion foloweth compro-
bacion / to shewe that no man els had any
cause to go there about / saue he whome we
accuse / nor no profite could com to no man
thereof: saue to hym.

¶ These are the wayes whereby an
orateur shall proue that the persone
accused had wyll to the thyng
that is layd to his charge.

TO proue that he might do it: ye must go to the circumstance of the cause / as that he had leyser ynough thereto / and place conuenient and strength withall. ¶ Also you shall proue it by signes / whiche are of meruaylouse efficacye in this behalfe / wherefore here must be noted that sygnes be eyther wordes or dedes that either did go before or els folow the dede. As Tully in his oracion now often alleged argueth against Clodius by signes goynge afore the dede / as that Clodius sayd thre dayes afore Milo was slayne: that he shulde nat lyue thre dayes to an ende. And that he went out of the city a lytle afore Milo rode furth with a great companye of stronge and myscheuous knaues.

¶ Signes folowyng are as yf after the dede was done he fled / or els whan it was layed to his charge: he blusshed or waxed pale / or stutted & coulde nat well speke.

¶ The contrary places (as I sayd afore) long to the defender / saue that in signes he must vse .ii. thinges / absolucion & inuerciō.

¶ Absoluciō is wherby the defendour sheweth that it is lafull for hym to do that what the aduersary bringeth in for a signe of his malice.

¶ Example.

¶ A man is founde couerynge of a dede bo[-]dy / & therupon accused of murder / he may

answere that it is lafull to do so for y^e pre-
seruacion of his body from rauons & other
that wolde deuoure hym / tyll tyme he had
warned people to fetcche and bury hym.

¶ Inuercion is wherby we shew that the
signe whiche is brought agaīst vs: maketh
for vs. As I wolde nat haue taryed to co-
uer hym yf I had done the dede my selfe:
but haue fled and shronke a syde into some
other way for feare of takynge.

¶ Of the conclusion.

T He cōclusion is as I haue said
afore in brieft repetyng of the
effecte of our reasons / & in mo-
uynge the Iudges to our purpose. The ac[-]
cuser to punysse the persone accused. The
defender / to moue hym to pity.

¶ Of the state iuridiciall / and
the handelynge thereof.

AS state coniectural cometh out
of this questyon (who dyd the
dede) so whan there is no doubt
but that the dede is done / and who dyd it /
many tymes controuersy is had / whether
it hath ben done lafully or nat. And this
state is negociall or iuridiciall / whiche con[-]
teyneth the right or wronge of the dede.
As in the oracyon of Tully for Milo / the
state is iuridiciall / for opē it was that Clo[-]
dius was slayn / and that Milo slew hym /
but whether he kyllled hym lafully or nat:

is the controuersy and state of the cause /
as I haue afore declared.

¶ The preamble and nar-
racion as afore. 🐾

T He confirmacion hath certayn
places appropred thereto / but
here must be marked that state
negociall is double / absolute / & assūptiue.

¶ State negociall absolute is whan the
thyng that is in controuersy is absolute-
ly defended to be lafully done. As in the
oraciō of Tulli for Milo / the dede is styfly
affirmed to be lawfully done in sleynge Clo[-]
dius / seyng that Milo dyd it in his owne
defence / for the law permitteth to repell vi-
olence violently.

¶ The places of confirmacion in state ab[-]
solute are these / nature / law / custome / equi[-]
ty or reason / iugemēt / necessity / bargayne
or couenant. ¶ Of the whiche places Tul[-]
ly in his oracion for Milo bryngeth in the
more parte to gyther in a cluster on this
maner. 🐾

I F reason hath prescrybed this to ler-
ned and wise men / and necessity hath
dryuen it into barbarous and rude folke / &
custome kepeth it among all nacions / and
nature hathe planted it in brute beestes /
that euery creature shuld defende hym selfe
and saue his lyfe and his body from all vi-
olence by any maner of socour / what mea-

nes or way so euer it were. you cā nat iuge
this dede euyl done / except you wyll iudge
that whan men mete with theuys or mur-
derers / they must either be slayne by the
wepons of suche vnthryfty and malicious
persones: either els perysshe by your sen-
tence gyuen in iugement vpon them.

¶ State assumptiue is whan the defence
is feble of it selfe / but yet it may be holpen
by some other thyng added to it. And the
places longynge to this state are graun-
tyng of the faute / remouynge of the faut /
or (as we say in our tongue) layeng it from
vs to an other / & [tanslatynge](#) of the faute.

¶ Grauntyng of the faut is whan the per[-]
son accused denieth nat the dede / but yet he
desyreth to be forgyuen / & it hath .ii. places
mo annexyd to it / purgacion & deprecaciō.

¶ Purgacion is whan he sayeth he dyd it
nat maliciously: but by ignorāce or mishap
whiche place Cato vseth ironiously in Sa[-]
lust / thus. My minde is that ye haue pyty
with you / for they that haue don amysse be
but very yonge men / and desyre of honour
draue them to it.

¶ Deprecaciō is whā we haue non excuse:
but we call vpon the Iustices mercy. The
handelynge whereof Tulli wryteth in his
boke of inuencion thus.

HE that laboreth to be forgyuē of his
faut / must reherce (yf he can) som be-
nefytes of his / done afore tyme / and shew

that they be farre greater in theyr nature than is the cryme that he hathe commyt-
ted / so that (how be it he hath done great-
ly amysse) yet the goodnes of his fore me-
rites are farre bygger / and so may well op-
presse this one faut. Nexte after that it be-
houeth hym to haue refuge to the merytes
of his elders / yf there be any / and to open
them. That don / he must retourne to the
place of purgacion / and shewe that he dyd
nat the dede for any hate or malyce / but ei-
ther by folysshnes / or els by the entisement
of som other / or for some prouable cause.
And than promise faithfully that this faut
shall teche hym to beware frō thens forth /
and also that theyr benefytes that forgyue
hym shal bynde hym assuredly neuer to do
so more / but perpetually to abhorre any
suche offence / and with that to shewe some
great hope ones to make them a great re-
cōpence & pleasure therfore agayne. After
this let hym (yf he can) declare som kynred
betwene thē & hym / or frendshyp of his el-
ders / & amplifie the greatenes of his ser-
uice & good harte towarde them / yf it shall
please them to forgiue this faut / & adde the
nobility of theym that wolde fayne haue
hym delyuered. And than he shall soberly
declare his owne vertues and suche thyn[-]
ges as be in hym perteynyng to honesty &
prayse / that he may by these meanes seme
rather worthy to be auaunced in honour
for his good qualities / than to be punished
for his fall.

¶ This done / let hym reherce some other that haue be forgyuen greater fautes than this is. It shall also greatly auayle yf he can shewe that he hathe in tyme afore ben in auctoritie and bare a rule ouer other / in the whiche he was neuer but gentyll and glad to forgyue them that had offended vnderneath hym. And than let hym extenuate his owne faute / and shew that there folowed nat so great damage therof / and that but lytle profyte or honesty wyll folowe of his punysshment. And finally than by common places to moue the iudge to mercy & pitie vpon hym.

¶ The aduersary must (as I haue shewed afore) vse for his purpose contrary places.

¶ Some Rhetoriciens put no mo places of deprecacion than only this that is here last reherced of Tulli / that is to do our best to moue the iustice to mercy and pity.

¶ Remocion of the faute is whan we put it from vs and lay it to another.

¶ Example.

The Venecians haue [commanded](#) certayne to go in ambassade to Englande / and thereuppon appointed theym what they shal haue to bere their charges / whiche money assigned: they can nat get of the treasurer: At the daye appoynted they go nat / whereupon they are accused to the Senate. Here they must ley the fault from them to the treasurer / which dispat-

ched them nat accordyng / as it was ordey[-]
ned that he shulde.

¶ Trāslacion of the faut is / whan he that
cōfesseth his faut sayeth that he dyd it: mo[-]
ued by the indignacion of the maliciouse
dede of an other.

¶ Example.

K Ynge [Agamennon](#) / which was chief
capitayne of the Grekes at the siege
of Troye / whan he cam home was slayne
of Egist[us] by the treason of Clitenestra his
owne wyfe / which murder his son Orestes
seyng / whan he cam to mannes state / re-
uenged his fathers dethe on his mother / &
slew her / whereupon he was accused. Here
Orestes can nat deny but he slew his mo-
ther: But he layeth for hym that his mo-
thers abhominable iniury cōstrayned him
thereto / bycause she slew his father.

And this is the handelynge of confirmaci-
on in state assumptiue.

¶ The conclusions in these oracions are
lyke to the conclusions of other.

¶ Of state legitime / and
the handelyng therof.

S Tate legitime is whan the con-
trouersy standeth in definicion or
contrary lawes / or doutfull wry-
tynges / or raciocinacion / or translacion.

¶ Of definicion.

D Efinicion (as Tully wryteth) is whan in any wrytynge is some worde put / y^e significaciō wherof requireth exposicion.

¶ Example.

A Lawe may be made that suche as forsake a shyppe in tyme of tempest shulde lese theyr ryght y^t they haue / either in the shyppe or in any goodes within the same vessell / & that they shal haue the shyp & the goodes that abyde styll in her.

¶ It chaūced .ii. men to be in a lytle crayer / of the whiche vessell the one man was both owner and gouernour / and the other: possessour of the goodes. And as they were in the mayne see / they espied one that was swymmyng in the see / and as well as he coulde holdyng vp his handes to them for socour / wherupon they (beyng moued with pitie) made towarde hym / & toke hym vp. Within a lytle after arose a greate tempest vpon them / and put them in suche ieopardy that the owner of the shyp (which was also gouernour) lepte out of the shyp into the shyp bote / and with the rope that tyed the bote to the shyp: he gouerned the shyp as well as he coulde. The marchant that was within the shyp / for greate dispayre of the losse of his goodes / wylllyng to sleepe him selfe: threst hym selfe in w[i]t[h] his owne

sword /

but as it chaunced the wounde was neyther mortall nor very greuouse / but natwithstādyng for that tyme he was vnable to do any good in helpyng the shyp against the impetuousnes of y^e storme. The thyrd man (whiche nat longe afore had suffered shyp wracke) gate hym to the sterne / and holpe the vessell the best that laye in hym. At lengthe the storme seaced / and the shyp came safe into the hauen / bote & all. He y^t was hurt (by helpe of chirurgiens) recoued[-] anon. Now euery of these thre chalēge the shyp & good[e]s as his owne. Here euery man layeth for hym the lawe aboue reherced / and all theyr controuersy lyeth in the expoundyng of thre wordes / abydyng in the shyp / and forsakyng the shyp / & what we shal in suche case call the shyp / whether the bote as part of the shyp: or els the shyp it selfe alone.

¶ The handelyng hereof is. Fyrst in few wordes and playne to declare the significacion of the worde to our purpose / and after suche maner as may seme resonable to the audience. Nexte / after suche exposicion to declare and proue the sayd exposicion true / with as many argumentes as we can.

Thyrdely to ioyne our dede with the exposicion / & to shew that we onely dyd obserue the very entent of the lawe. Than to refell the exposicion of our aduersaries / & to shew that their exposicion is contrary to reason and equitie / and that no wyse man wyll so

take the law as they expounde it / and that the exposition is neither honest nor profitable / and to conster theyr exposition with oures / and to shew that oures conteyneth the veritie / and theirs is falce. Oures honest / reasonable / & profitable: Theyrs clene contrarye. And than serche out lyke examples / either of greater maters or of lesse / or els of egall maters / and to manifest by thē that our mynde is the very truthe.

¶ Contrary lawes are where the tone semeth evidently to contrarye the other. As yf a law were that he whō his father hath forsaken for his sōne / shall in no wyse haue any porcion of his fathers goodes. And an other law / that who so euer in tyme of tempest abyde in the shyp: shall haue y^e shyp and goodes. Than pose that one whiche was of his father so abiecte and denyed for his chylde: was in a shyp of his fathers in tyme of sore wether / & whan all other for feare of lesynge them selfe forsoke the shyp & gate them into the bote: he onely abode / and by chaunce was safe brought into the haven / wherupon he chalengeth the vessell for his / where as the party defendant wyll lay against hym that he is abdicate or forsaken of his father / and so can nat by the law haue any parte of his goodes.

Here must he say agayn for hym that this law alleged doth all only priuate frō theyr fathers goodes suche as be abdicate & yet wolde challenge a part as his children / but y^t he doth nat so / but requireth to haue the

shyp / nat as a son to his father: but as any other straunger myght / seyng the law gy-ueth him the shyp yt abideth in her in time of necessity. And so the handelynge of this state / either to deny one of yt lawes & shew that it hath ben afore annulled / or els to expounde it after the sence that is mete to our purpose.

¶ Doubtfull writynge is where either the mynde of the author semeth to be contrary to that that is wryten / which som call wry[-]tynge & sentence / or els it is whan the wor[-]des may be expounded dyuers wayes.

¶ Example of the fyrst.

MEn say it is a law in Caleys that no straunger may go vppon the towne walles on payne of dethe. Now than pose that in tyme of warre the towne beyng harde besieged / an alien dwellynge in the towne getteth hym to the walles amonge the soudiers / & doeth more good than any one man agayn. Now after the siege ended he is accused for transgressyng of the law / which in wordes is euidently against him. But here the defendaunt must declare the wryters mynde by circumstaunces / what straunger he dyd forbyd / and what tyme / and after what maner / and in what intent he wolde nat haue any straunger to come on the walles / & in what intent his mynde might be vnderstanden to suffre an alien to go vpon the walles. And here must the effect of the straūgers wyll be declared / that

he went vp to defend y^e towne to put back
their enemies. And therto he must say that
the maker was nat so vndiscrete & vnreaso[-]
nable that he wolde haue no maner of ex-
cepcon which shuld be to the welth / p[ro]fite /
or preseruacion of the towne. For he that
wyll nat haue y^e law to be vnderstandē ac[-]
cording to equitie / good maner / & nature /
entendeth to proue the maker therof either
an vniust man / or folyssh or enuious.

¶ The accuser contraryly shall praise the
maker of the law for his great wisdom / for
his playne writyng without any maner of
ambiguity / y^t no straūger shulde p[re]sume to
go vpon the walles / & reherce y^e law word
for worde / & thā shew som reasonable cause
that mouyd the maker of the law that he
wolde vtterly that no straunger shulde as-
cende the walles. &c. Exāple of the secōd.

A Man in his testamēt gyueth to two
yonge doughters that he hathe two
hūdred shepe / to be delyuered at the day of
theyr maryage / on this maner.  I wyll
that myne executoures shall gyue to my
doughters at the tyme of theyr maryage
euery of theym an hundred shepe / suche as
they wyll. At the tyme of maryage they de[-]
maunde theyr cattell / whiche the execu-
tours deliuer nat of suche sort as the may-
dēs wold / wherupō the cōtrouersy ariseth.
For the executours say they are bounde to
delyuer to euery of them an hundred shepe /
suche as they that be the executours will.
Now here standeth the dout / to whom we

shall referre this worde *they* / to the doughters / or to the executours.

The maydens say nay thereto / but that it was theyr fathers mynde that they shulde haue euery of theym an .C. shepe / suche as they that be the doughters wyll.

¶ The handelyng of doutfull wrytyng is to shew yf it be possible that it is nat wrytē doutfully by cause it is the comon maner to take it after as we saye / & that it may sone be knownen by suche wordes as partely go before that clause & p[ar]tly folow / & that there be few wordes / but if they be considered so alone / they may anon be taken doubtfully. And first we shal shew if we can y^t it is nat doubtfully wryten / for there is no reasona[-]ble mā: but he wyll take it as we say. Thā shal we declare by that that goeth afore / & foloweth / that it is clerly euin as we say / & that yf we consider the wordes of thē selfe they wyll seme to be of ambiguity / but seynge they may by the rest of the wrytynge be euident ynough / they ought nat to be ta[-]ken as doubtfull. And than shew that yf it had ben his minde that made the wrytyng to haue it taken as the aduersarye sayeth: he neded nat to haue wrytē any suche wor[-]des. As in the example now put / the maydens may say that yf it had ben theyr fathers mynde that the executours shoulde haue delyuered suche shepe as it had pleased them to delyuer: he neded nat to haue added these wordes *suche as they wyll*. For yf they had nat ben put / it wolde nat haue

ben doubt but that the executours dely-
uerynge euery of them an hundred shepe
(what so euer they were) had fulfilled the
wyll / and coulde haue ben no further com-
pelled / wherfore if his mynde was as they
say / it was a great folye to put in tho wor-
des whiche made a playne mater to be vn-
plaine. And than finally shew it is more ho[-]
nest and conuenient to expounde it as we
say: than as our aduersaries do.

¶ Raciocinacion is whan the mater is in
controuersy / wherupon no law is decreed /
but yet the iugement therof may be foude
out by lawes made vpon maters somdele
resemblynge thereunto.

¶ As in Rome was this law made / that
yf any persone were distraught / his posses-
sions and goodes shulde come to the han-
des of his next kynne.

¶ And an other law / what any househol-
der doth ordeyn & make as concernyng his
householde and other goodes / it is appro-
bate and confirmed by the law.

¶ And an other law / if any housholder dye
intestate / his money & other goodes shal re[-]
mayne to his next kyn. ¶ It chaūced one
to kyll his owne mother / wherupō he was
taken & cōdēpned to deth / but while he lay
in pryson / certayn of his familiare frendes
cam thyder to hym / & brought with them
a clerke to wryte his testament / whiche he
there made / & made suche executours as it
pleased hym. After his deth his kynnesmē

challenge his good[e]s / his executours say thē
nay / wherupō ariseth cōtrouersy afore the
iustice. ¶ There is no law made vpon this
case / whether he y^t hath killed his mother
may make any testamēt or nat / but it may
be reasoned on bothe p[ar]ties by the lawes a-
boue reherced. The kynsmen shal allege y^e
law made for thē y^t be out of theyr mynd[e]s /
p[re]supposyng hym nat to be in moche other
case / or els he wold nat haue don the dede.
The contrary parte shall allege the other
law / & shew that it was none alienacion of
mynde: but som other cause y^t moued hym
to it / & that he hathe had his punysshment
therfore / whiche he shulde nat haue suffred
of cōuenient if he had ben besyde him selfe.

¶ Translacion is whiche the lawyers call
excepcion / as yf the person accused pleade
that it is nat lawfull for the tother to ac-
cuse hym / or that the Iuge can be no iuge
in that cause. &c.



¶ The conclusion of the Author.



Hese are my speciall
and

singuler good Lorde whiche I
haue purposed to wryte as tou-
chyng the chief poynt of y^e .iiii.

that I sayd in the begynnyng to long to a
Rhetoricien / & which is more difficulty thā
the other .iii. so that it ones had / there is no
very great maistry to com by the resydue.
Natwithstandyng yf I se that it be fyrste

acceptable to your good lordship / in whom
next god & his holy saintes I haue put my
chief cōfidence & trust / & after yt yf I fynde
that it seme to ye reders a thing worthy to
be loked on / & yt your lordshyp & they think
nat my labour takē in vayne: I wyll assay
my selfe in ye other partes / & so make & ac-
cōplyssh ye hole werk. But now I haue fo[-]
lowed ye facion of Tulli / who made a seue[-]
rall werke of inuencion. And though ma-
ny thynges be left out of this treatyse that
ought to be spoken of / yet I suppose that
this shall be sufficyent for an introduction
to yonge begynners / for whome all onely
this booke is made. For other that ben en-
tred all redy shall haue lytle nede of my la-
bour / but they may seke more meter thyn-
ges for theyr purpose / either in Hermogi-
nes amonge the Grekes / or els Tullie or
Trapesonce / amonge the Latines. And to
them that be yonge begynners nothyng
can be to playne or to short / wherfore Ho-
race ī his boke of ye craft of Poetry sayth.



*Quicquid precipies esto breuis vt cito dicta
Percipiant animi dociles teneantq[ue] fideles.*

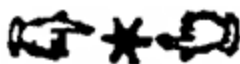


What so euer ye wyll teache (sayeth he)
be briefe therin / that the myndes of the he-
rers or reders may the easiyr perceyue it /
and the better bere it away. And the Em-
perour Iustinian sayeth in the fyrste boke
of his institucions in the paragraph of iu-
stice and right / that ouer great curiosity in
the fyrst principles / make hym that is stu-
dious of the facultie either to forsake it: or

els to attayne it with very great and tedy[-]
ouse labour / and many tymes with great
dispayre to com to the ende of his purpose.
And for this cause I haue ben farre lesse cu[-]
riouse than I wolde els haue ben / and also
a great dele the shorter. If this my labour
may please your lordeshyp / it is the thyng
that I do in it moost desyre / but yf it seme
bothe to you and other a thyng that is ve-
ry rude and skant worthe the lokynge on:
yet Aristotles wordes shal confort me / who
sayeth yt men be nat onely bounde to good
authors: but also to bad / bicause yt by their
wrytynge they haue prouoked cunnynger
men to take the mater on hande / whiche
wolde els peraduenture haue helde theyr
peace. Truely there is nothyng that I
wolde be more gladder of / than yf it might
chaunce me on this maner to cause theym
that be of moche better lernynge and excer[-]
cise in this arte than I / of whō I am very
sure that this realme hath greate plenty /
that they wold set the penne to the paper /
and by their industry obscure my rude igno[-]
raunce. In the meane space I beseche the
reders / yf they fynde any thyng therein
that may do them any profyte / that they
gyue the thanks to god and to your lord-
shyp / and that they wyll of theyr charitie
pray vnto the blessyd Trinite for me / that
whan it shall please the godhed to take
me from this transitory lyfe / I may
by his mercy be of the nombre of
his elect to p[er]petuall saluacion.



¶ Imprinted at London in Fletestrete
by saynte Dunstones chyrche / at the
sygne of the George / by me Ro-
bert Redman / The yere of our
lorde god a thousande / fyue
hundred and two and
thyrty. 



¶ Cum priuilegio.







Printer Errors

Transcriber's Note: The following is a list of printer errors in the original.

Page	Error	Correct
A.iii.v	ουτοσ	ουτος
A.iii.v	(Eloquence	/ Eloquence
A.viii.r	conceruynge	concernyng
B.ii.v	his his	his
B.iii.r	Tigraues	Tigranes
B.vi.r	Plato	Pluto
B.vi.v	prefaces of	prefaces or
B.viii.r	& &	&
C.i.r	landes	laudes
C.ii.r	channced	chaunced
C.iii.r	au	aut
C.iii.v	Frannce	Fraunce
C.iii.v	Nephien	Nephieu
C.iii.v	vnder in	vnder
C.vii.r	p[er]fite	p[ro]fite
D.i.r	(of	/ of
D.ii.r	ematers	maters
D.iii.r	narraciions	narracions
D.iii.v	landes	laudes
D.v.v	Scisnola ta nala	δύσκολα τὰ καλὰ
D.v.v	garnyssshyng	garnysshyng
D.vi.v	is is	is
D.vi.v	bronght	brought
D.viii.r	necesry	necessary
E.ii.r	e tryed	be tryed
E.iii.r	patria	patriae
E.iii.r	E.iii.	E.iiii.
E.vii.v	tanslatyng	translatyng
F.i.r	commanneded	commaunded
F.i.r	Agamennon	Agamemnon

Note: The following are **not** typographical errors: “fet” (fetch or fetched); “nat” (not); “tho” (those); “slee” (slay); “lese” (lose); “meuyd” (moved).

*** END OF THE PROJECT GUTENBERG EBOOK THE ART OR
CRAFT OF RHETORIC ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual

work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in

the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of

exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b)

alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up

to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.